

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 05/06/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 8:31 AM CASE NUMBER: C23-00085
CASE NAME: LAURA BEGIN VS. SAN RAMON VALLEY FIRE PROTECTION DISTRICT
*TRIAL SETTING CONFERENCE TO TRAIL SUMMARY JUDGMENT ALREADY ON CALENDAR
FILED BY:
TENTATIVE RULING:

On the Court's own motion, the Trial Setting Conference (TSC) is continued to June 3, 2026.

2. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

The case has settled. The Case Management Conference is **continued** to July 9, 2026 at 8:30 a.m. in Department 16 as a dismissal review hearing. If a dismissal has been filed before that date, the hearing will be vacated.

3. 9:00 AM CASE NUMBER: C24-01961
CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD
***CASE MANAGEMENT CONFERENCE TO FOLLOW-UP ON JUDGMENT POST JURY TRIAL**
FILED BY:
TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the Motion for Judgment Notwithstanding the Verdict, Line 13. This hearing is vacated due to the May 5, 2026 filing by Defendant Nataliya Howard of a Motion to Disqualify Judge Reyes. No appearance is required.

4. 9:00 AM CASE NUMBER: C24-02810
CASE NAME: DOMINGA ELEANOR ULIBARRY JIMENEZ VS. TERRICE WARREN
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the Motion for Sanctions, Line 15. Counsel are ordered to appear for the CMC either in person or remotely. If the Tentative Ruling for Line 6 is uncontested, this CMC is continued to September 4, 2026 at 8:30am.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00085
CASE NAME: LAURA BEGIN VS. SAN RAMON VALLEY FIRE PROTECTION DISTRICT
HEARING ON SUMMARY MOTION RE DEFENDANTS SAN RAMON VALLEY FIRE PROTECTION DISTRICT AND JOHN DUGGAN
FILED BY:
TENTATIVE RULING:

Continued by the Court, *sua sponte*, to June 3, 2026.

6. 9:00 AM CASE NUMBER: C23-01442
CASE NAME: SIOBHAN DUFALL VS. ROLANDO GUTIERREZ
***HEARING ON MOTION IN RE: RECONSIDERATION OF AN ORDER ADOPTING THE 11/19/25 TENTATIVE RULING GRANTING ARCH INSURANCE COMPANY'S MOTION FOR LEAVE TO FILE A COMPLAINT IN INTERVENTION**
FILED BY:
TENTATIVE RULING:

Plaintiff's motion under CCP sections 473(b) and 1008 is **off calendar** based on Plaintiff's withdrawal

of the motion. The case has settled. A dismissal review hearing is set for **July 9, 2026 at 8:30 a.m. in Department 16**. If a dismissal has been filed before that date, the hearing will be vacated.

7. 9:00 AM CASE NUMBER: C23-01531
CASE NAME: STEVIE HAYES VS. BLUE APRON, LLC
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS AND REPRESENTATIVE ACTION SETTLEMENT**
FILED BY: HAYES, STEVIE A.
TENTATIVE RULING:

Summary

Plaintiffs Stevie A. Hayes ("Plaintiff Hayes") and Cortez Mitchell ("Plaintiff Mitchell") (collectively "Plaintiffs") request that the Court grant preliminary approval of a class action settlement of wage and hour claims, including a claim under the California Private Attorneys General Act of 2004, codified at Labor Code §§ 2698, et seq. ("PAGA"), against Defendant Blue Apron, LLC ("Defendant") (collectively, Plaintiffs and Defendant are referred to as the "Parties"). This settlement is preliminarily approved, and this motion is **granted** as set forth herein. No appearance is required at the May 6, 2026 hearing.

Background and Settlement Terms

Pursuant to California Rules of Court 3.769 (d) and (e), Plaintiffs Stevie A. Hayes ("Plaintiff Hayes") and Cortez Mitchell ("Plaintiff Mitchell") (collectively "Plaintiffs") request that the Court grant preliminary approval of a class action settlement of wage and hour claims, including a claim under the California Private Attorneys General Act of 2004, codified at Labor Code §§ 2698, et seq. ("PAGA"), against Defendant Blue Apron, LLC ("Defendant") (collectively, Plaintiffs and Defendant are referred to as the "Parties").

On June 21, 2023, Plaintiff Hayes filed a putative class action on behalf of Defendant's non-exempt employees alleging the following causes of action: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to permit rest breaks; (5) failure to provide accurate itemized wage statements; (6) failure to pay all wages due upon separation of employment; (7) violation of Business and Professions Code § 17200, et seq.; for the preceding claims. Plaintiff Hayes' counsel provided written notice to the LWDA and Defendant regarding Defendant's alleged Labor Code violations, as required by Labor Code section 2699.3(a). Id. at Ex. 2. The LWDA did not respond to this notice, indicating it did not intend to investigate, thus allowing Plaintiff Hayes to bring a PAGA claim against Defendant. Id. at ¶ 3. On September 11, 2023, Plaintiff Hayes separately filed a representative action complaint against Defendant seeking to recover PAGA penalties for the same Labor Code violations, also in Contra Costa Superior Court, Case No. C23-02278 (the "Hayes PAGA Action"). Id. at ¶ 4.

On August 25, 2023, Plaintiff Mitchell filed a putative class action against Defendant in Contra Costa Superior Court, Case No. C23-02125 (the "Mitchell Class Action"). The Mitchell Class Action was

removed to federal court on October 6, 2023 but has since been remanded back to state court pursuant to stipulation. Id. at ¶ 5. On September 15, 2023, Plaintiff Mitchell separately filed a representative action complaint against Defendants seeking to recover PAGA penalties for the same violations, also in Contra Costa Superior Court, Case No. C23-02337 (the “Mitchell PAGA Action”). Id. 6 at ¶ 6. On December 6, 2024, the Hayes Class Action, the Hayes PAGA Action, and the Mitchell PAGA Action were consolidated before the Superior Court for the County of Contra Costa (the “Consolidated Actions”). Id. at ¶ 9. After an unsuccessful mediation session with a mediator, Counsel for the Parties arrived at their own settlement in principle, which was memorialized into a settlement. The terms of the settlement agreement follow.

The putative class consists of approximately 1008 non-exempt employees who worked for Defendant in California (individually, “Class Member”; collectively, the “Class”) from April 9, 2020 through June 9, 2023 (the “Class Period”). The basic terms of the Joint Stipulation of Class Action and PAGA Settlement and Release (“Settlement Agreement” or “Settlement”) provide for the following:

- (1) A non-reversionary Gross Settlement Amount of \$575,000.00 allocated to approximately 1008 Class Members on a pro rata basis according to the number of weeks each Class Member worked during the Class Period;
- (2) An award of up to one-third of the Gross Settlement Amount (currently \$191,666.67) and up to \$35,000.00 in reimbursement of costs to Plaintiffs’ Counsels for services rendered as counsel on this matter;
- (3) Service Payment of up to \$10,000.00 to each Named Plaintiff;
- (4) Settlement Administration fees and costs of up to \$9,750.00; and
- (5) Allocations of \$25,000 for resolution of civil penalties under PAGA. Seventy-five percent (75%) of this payment will be paid to the California Labor and Workforce Development Agency (“LWDA Payment”), and twenty-five percent (25%) will be paid to Class Members who worked for Defendant during the PAGA Period (the “Aggrieved Employees”).

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a

salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the Court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, proposed litigation costs, administrative costs, and the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.

1. The settlement is preliminarily approved and this Motion is **granted**.
2. the Court will execute the proposed order lodged March 2, 2026, consistent with this tentative ruling and the court clerk shall attach a copy of this tentative ruling. Where the provisions of the proposed order lodged March 2, 2026 are inconsistent with or conflict the terms of this ruling, this ruling shall prevail.
3. Class counsel are directed to serve this order to parties/counsel on the service list.
4. No appearance is required at the May 6, 2026 hearing.

8. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
***HEARING ON MOTION IN RE: LEAVE TO FILE AMENDED COMPLAINT**
FILED BY: MALM, DREW
TENTATIVE RULING:

Plaintiff's Motion for Leave to File a SAC is continued to be heard concurrently with Defendant's MSJ/A to Plaintiff's FAC on May 13, 2026, 9:00 am in Department 16.

9. 9:00 AM CASE NUMBER: C24-00068

CASE NAME: JOSHUA LOPEZ VS. VEOLIA NORTH AMERICA, LLC., A DELAWARE LIMITED LIABILITY COMPANY

*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: LOPEZ, JOSHUA

TENTATIVE RULING:

Summary

Plaintiff Joshua J. Lopez, on behalf of himself and others similarly situated, ("Plaintiff") seeks preliminary approval of the proposed Class Action and PAGA Settlement ("Settlement" or "Settlement Agreement") entered with Defendants Veolia North America, LLC, Veolia Water West Operating Services, Inc., Veolia Water North America-West, LLC, Veolia Water Contract Services USA, LLC, and Veolia Water North America Operating Services, LLC ("Defendants") (Plaintiff and Defendants are collectively herein referred to as the "Parties"). The Settlement Agreement is preliminarily approved and this Motion is **granted** as set forth herein. No appearance is required at the May 6, 2026 hearing.

Background

On January 9, 2024, Plaintiff Joshua J. Lopez ("Plaintiff") commenced the Action by filing a complaint alleging causes of action against Defendants for (1) Failure to Pay Minimum Wages; (2) Failure to Pay Wages and Overtime; (3) Meal Period Violations; (4) Rest Period Violations; (5) Violation of Labor Code §226(a); (6) Violation of Labor Code §221; (7) Violation of Labor Code §204; (8) Violation of Labor Code §203; (9) Failure to Pay for On-call Time Under Labor Code §§ 204, 510, 1194; (10) Failure to Maintain Records Required under Labor Code §§ 1174, 1174.5; (11) Failure to Produce Requested Employment Records under Labor Code §§ 226, 1198.5; and (12) Violation of Business & Professions Code §17200 et seq. (Manus Decl., ¶ 2.)

On January 9, 2024, and pursuant to Labor Code §2699.3, subd.(a), Plaintiff gave timely notice to the LWDA and Defendants that Plaintiff intended to proceed with a representative action under PAGA (LWDA-CM-1004014-24). On March 14, 2024, after the 65-day statutory period passed, Plaintiff filed his First Amended Complaint, which added claims for penalties under PAGA, Labor Code § 2698. On July 16, 2025, Plaintiff filed his Second Amended Complaint (the "Operative Complaint"), which added additional Defendants. (Id. at ¶ 3.) Plaintiff contends, via the Operative Complaint, that Defendants violated California's wage and hour laws by failing to pay all wages due including all minimum wages, overtime wages, failing to provide all meal periods and rest periods, failing to maintain records; failing to provide accurate itemized wage statements, failing to timely pay final wages due during and upon separation of employment, and thereby also violating California Business & Professions Code sections 17200, et seq., and incurring penalties under PAGA. (Id. at ¶ 4.)

Plaintiff respectfully requests that this Court conditionally certify the below-defined class for settlement purposes only, under Code of Civil Procedure section 382; appoint Class Counsel and Plaintiff as the Class Representative; preliminarily approve the proposed Settlement, including the Private Attorney General Act of 2004 ("PAGA") portion of the Settlement, which allocates \$75,000.00 to penalties pursuant to the PAGA; direct that the Class Notice be disseminated to the Class; and

schedule a hearing for Final Approval of the Settlement and request for Attorneys' Fees and Costs, and the Class Representative Enhancement Award.

The Settlement Agreement proposes the following Class: All non-exempt, hourly employees who worked for Defendants in California at the Settling Locations (defined as the seventeen (17) municipal water sites located in Arvin, CA, Burlingame, CA, Ontario, CA (2), Discovery Bay, CA, East Palo Alto, CA, Fillmore, CA, Hollister, CA, Lathrop, CA, Palm Springs, CA, Richmond, CA, Rio Vista, CA, Santa Paula, CA, Banning, CA, Burbank, CA, Jurupa Valley, CA, and El Segundo, CA) during the Class Period (defined as January 9, 2020, through April 30, 2025.) (Id. at ¶ 13, Ex. 1, pp. 3, 7.) There is total of approximately 29,000 Workweeks worked by Class Members during the Class Period, resulting in a recovery of an estimated \$25.74 per Workweek (estimated NSA of \$746,500 divided by 29,000). Each Class Member will receive an average Individual Settlement Award of approximately \$2,262.12 (estimated NSA of \$746,500 divided by 330 Class Members), with the highest estimated Individual Settlement Award of approximately \$7,129.98 (total weeks in the Class Period (277) multiplied by \$25.74). (Manus Decl., ¶ 7.)

Additional terms include: (1) Class Counsel Fees \$435,000 (1/3 of the Gross Settlement Amount), (2) Class Counsel costs for actual expenses Up to \$30,000 incurred; (3) Administration Costs Estimated to be up to \$8,500; (4) Class Representative Enhancement Award \$10,000 to Plaintiff Joshua J. Lopez , (5) PAGA Penalties \$75,000 (\$56,250 to LWDA; \$18,750 to Aggrieved Employees). The Parties have agreed on Apex Class Action Administrators ("Apex" or "Administrator") as the Administrator and respectfully request that this Court appoint Apex to handle the claims administration procedures, including the Class Notice procedure, including posting relevant case-related settlement documents, including the judgment on Apex's website.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141

Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs, the administration costs, and the requested representative payment of \$10,000 to Plaintiff Joshua J. Lopez will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.

The settlement is preliminarily approved, and this Motion is **granted as follows:**

1. The Court conditionally certifies, for settlement purposes only, a Class consisting of all non-exempt, hourly employees who worked for Defendants in California at the Settling Locations (defined herein) during the Class Period (i.e., the period from January 9, 2020, through April 30, 2025);
2. The Court preliminarily appoints Emil Davtyan, David Yeremian, Alvin B. Lindsay, Enoch J. Kim, Marta Manus, and the other attorneys of D. Law, Inc. as Class Counsel;
3. The Court preliminarily appoint Plaintiff Joshua J. Lopez as the Class Representative;
4. The Court order preliminary approval of the proposed Class Action and PAGA Settlement Agreement (“Settlement”) on a class-wide basis, direct that the Class Notice to be mailed to the Class, and set a hearing for final review of the proposed Settlement;
5. The Court preliminarily appoints Apex Class Action Administrators as the Administrator to handle the Court Approved Notice of Class Action Settlement and Hearing Date for Final Court Approval (“Class Notice”) and claims administration procedures as set forth in the Settlement; and;
6. The Court preliminarily approves the allocation of PAGA Penalties pursuant to the Settlement
7. the Court will execute the proposed order lodged November 11, 2025, consistent with this tentative ruling and the court clerk shall attach a copy of this tentative ruling. Where the provisions of the proposed order lodged March 2, 2026 are inconsistent with or conflict the terms of this ruling, this ruling shall prevail.
8. Class counsel shall provide notice of this order to the counsel / parties on the service list.

9. No appearance is required at the May 6, 2026 hearing.

10. 9:00 AM CASE NUMBER: C24-00225
CASE NAME: MONICA DUARTE VS. JORGE FIGUEROA
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT (CONTINUED FROM 3/4/26)
FILED BY: FIGUEROA, JORGE
TENTATIVE RULING:

Before the Court is Defendant Jorge Figueroa's Demurrer to Plaintiffs' Second Amended Complaint.

Factual Allegations and Procedural Background

Plaintiffs were both residents of Quail Lodge Retirement Community, an independent senior living community in Antioch, California. (¶2, 10.) They each had a separate lease with Sunshine Retirement Living and/or Sunshine Retirement Living LLC ("Sunshine Entities"). (¶ 10.) Defendant Jorge Figueroa worked at Quail Lodge as the Executive Director while Plaintiff's were residents there. (¶3, 10.)

In August 2023, Plaintiffs intended to get married and were invited by the Quail Lodge staff to get married at the facility. (¶ 10.) Thereafter, Plaintiffs allege that the staff and residents began to assault and harass them. (¶¶ 11-19.) Following these actions, Ms. Duarte was evicted in mid-September 2023, and Mr. Bullock was evicted on October 31, 2023. (¶ 14, 18.)

Specific to Defendant Figueroa, the SAC alleges that he made verbal threats, posted an eviction notice on Ms. Duarte's door, did not explain why she was being evicted, and generally made Plaintiffs feel unsafe and unwelcome. (e.g. ¶¶ 13-15, 55.)

Plaintiff filed their Complaint on January 29, 2024. A First Amended Complaint was filed on March 8, 2024, asserting 14 causes of action. The Sunshine Entities demurred to the FAC, which was sustained as to all causes of action. Thereafter, the Second Amended Complaint was filed on July 17, 2024, alleging the same 14 causes of action. The Sunshine Entities filed a motion for judgment on the pleadings. The MJOP was granted as to: violation of Bane Act (1st CoA); negligent infliction of emotional distress (5th CoA); intrusion into private affairs (7th CoA); and breach of implied warranty of habitability (9th CoA).

The causes of action that remain and to which Defendant Figueroa demurs are: (2nd CoA) assault; (4th CoA) intentional infliction of emotional distress; (6th CoA) negligence; (8th CoA) retaliation – violation of Civil Code § 1942.5; (10th CoA) breach of covenant of quiet enjoyment; (11th CoA) wrongful eviction; (12 CoA) elder abuse; and (13th CoA) negligent hiring, training, supervision, & retention.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the

plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Assault

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (*So v. Shin* (2013) 212 Cal.App.4th 625, 668-69.)

As noted by Defendant, there are no allegations relevant to the first element directly related to Mr. Figueroa. There are specific allegations relating to Mikki Estrada and her husband's actions of making physical contact with Ms. Duarte and threatening harmful contact. (¶ 17.) As to Mr. Figueroa, it is alleged that he yelled at Ms. Duarte and that he generally 'threatened' her 'on five of six different occasions.' (¶ 36-37.) There are no allegations, however, that he ever intended to cause any contact or threatened to touch Ms. Duarte in any way. As to Plaintiff Bullock, there are not even any allegations that Mr. Figueroa interacted directly with him in any way.

In opposition, Plaintiffs' counsel indicates that he informed Defendants' counsel that he would be willing to dismiss this cause of action. No such dismissal was filed. As such, the Court must rule on the demurrer.

Defendant's demurrer to the assault cause of action is **sustained**.

Intentional Infliction of Emotional Distress

"The elements of the tort of intentional infliction of emotional distress are: '(1) Extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.'" (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 *quoting Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.) "The defendant must have engaged in 'conduct intended to inflict injury or engaged in with the realization that injury will result.'" (*Ibid.*)

"In order to avoid a demurrer, the plaintiff must allege with 'great[] specificity' the acts which he or

she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832 quoting *Schlauch v. Hartford Accident & Indemnity Co.* (1983) 146 Cal.App.3d 926, 936.)

“Liability for intentional infliction of emotional distress “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” [Citation.]’ [Citations] [¶] With respect to the requirement that a plaintiff show severe emotional distress, [the Supreme Court] has set a high bar. ‘Severe emotional distress means “emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1265 quoting *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.)

“It is for the court to determine in the first instance whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (*Ibid.*)

The SAC alleges that Mr. Figueroa informed Ms. Duarte that she was going to receive a 3-day notice to move out “or he would have her ‘handcuffed and pulled out the front door’” (¶51), posted the 3-day notice on Ms. Duarte’s door and did not give her a reason why (¶ 52), and “threatened both Plaintiffs with violence.” (¶ 53.)

To begin with, informing a person they will be posting a 3-day notice to move and then doing so does not constitute ‘extreme and outrageous conduct,’ especially when there are no allegations that the 3-day notice to quit was improper. There are no allegations that the eviction was illegal or improper, just that Defendants did not provide a reason for the 3-day notice. Plaintiffs have cited no law requiring an explanation. While the threat that he would have her ‘handcuffed and pulled out the front door,’ is certainly unwarranted, liability for intentional infliction of emotional distress “does not extend to mere indignities [or] threats....” (*Jackson*, 10 Cal.App.5th at 1265.)

Likewise, such liability does not extend to the general allegation that Mr. Figueroa “threatened both Plaintiffs with violence.” How did he make such threats, were they credible threats, were they even made in person, did Plaintiff’s perceive the threats as credible? No such information is provided. The SAC must allege “with ‘great specificity’ the acts” which Plaintiffs believe support this claim. These general allegations are insufficient.

The SAC also fails to properly plead that Plaintiffs suffered severe emotional distress beyond the conclusory allegation that such occurred. “The complaint must plead specific facts that establish severe emotional distress resulting from defendant’s conduct.” (*Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114.) Plaintiffs must plead specifics facts demonstrating the nature, extent, and duration of their alleged emotional distress. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) No such allegations appear in the SAC.

Defendant’s demurrer to the intentional infliction of emotional distress cause of action is **sustained**.

Negligence

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care towards the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.”

(*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

It is unclear what duty allegedly exists, how Defendant Figueroa breached that duty, and what damages were caused by that alleged breach. In the Negligence cause of action, it is alleged that Defendant Figueroa informed Ms. Duarte that she was going to receive a 3-day notice to quit and yelled at her about this. (§ 75.) As outlined above, there are other allegations that Mr. Figueroa posted the 3-day notice on Ms. Duarte's door and did not give her a reason why (§ 52), and "threatened both Plaintiffs with violence." (§ 53.) None of these allegations explain what duty Mr. Figueroa had to Plaintiffs that was breached.

Plaintiff argues that these actions are a "general breach of duty," citing Civil Code § 1714. (Opp. at 6:10-14. Civil Code § 1714 states, in relevant part:

Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.

Plaintiffs do not explain how this general duty relates to allegations of yelling at someone. As noted above, there are allegations that Mr. Figueroa posted a 3-day notice on Ms. Duarte's door. However, there are no allegations this was done improperly. Plaintiffs' reference to the *Rowland* factors likewise do not explain what duty is being asserted or how it links to the actions of Mr. Figueroa. Plaintiffs' mention of a landowner's duty appears to be even more far afield as there are no allegations the Mr. Figueroa is a landowner. Mr. Figueroa is instead alleged to be an employee of the entity that operates the retirement community where the alleged incidents took place.

Plaintiff's citation to *Di Mare v. Cresci* (1962) 58 Cal.2d 292 and *Burks v. Blackman* (1959) 52 Cal.2d 715 are inapplicable. Those cases discuss a landlord's liability for defective condition of property – i.e. physical defects that caused injury. They do not relate to claims of general negligence for non-physical injuries such as those alleged in this matter.

In addition to the above, there are no allegations linking any of the above allegations to any damages suffered by Plaintiffs.

Defendant's demurrer to the negligence cause of action is **sustained**.

Retaliation – violation of Civil Code § 1942.5

Code of Civil Procedure § 1942.5 states, in relevant part:

If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenantability of a dwelling, and if the lessee of a dwelling is not in default as to the payment of rent, the lessor may not recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services within 180 days of any of the following:

(1) After the date upon which the lessee, in good faith, has given notice pursuant

to Section 1942, has provided notice of a suspected bed bug infestation, or has made an oral complaint to the lessor regarding tenantability.

Plaintiff argues that this cause of action is based on “complaints to Mr. Figueroa that Mikki created a hostile living environment and then to upper management that Mr. Figueroa was threatening them to leave....” (Opp. at 7:16-18.) Plaintiff fails to cite, however, any paragraphs of the SAC that make these allegations. The Court is unable to find any such allegations.

In addition, none of those above actions appear to relate to “tenantability” of the Plaintiffs’ residences. Civil Code § 1941.1 states that a dwelling “shall be deemed untenable” if it lacks certain characteristics, such as effecting waterproofing and weather protection, sufficient heating facilities, electrical and wiring that complies with applicable laws, and clean and sanitary conditions of the premises. (Civ. Code § 1941.1 (a) (1)-(11).) In other words, “tenantability” relates to the physical characteristics of the premises. There are no allegations that the premises were deficient in any physical way.

Defendant’s demurrer to the retaliation cause of action is **sustained**.

Breach of Covenant of Quiet Enjoyment

“In the absence of language to the contrary, *every lease* contains an implied covenant of quiet enjoyment, whereby the **landlord impliedly covenants** that the tenant shall have quiet enjoyment and possession of the premises. (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588 emphasis added.) This implied covenant “gives rise to **duty in the landlord** ‘to preserve that quiet enjoyment of all tenants.’” (*Ibid.* emphasis added.)

There are no allegations that Mr. Figueroa is Plaintiffs’ landlord. Instead, the SAC alleges that Plaintiffs resided at the retirement center “pursuant to a lease agreement with Sunshine Retirement Living and/or Sunshine Retirement Living LLC through their agent, Quail Lodge Retirement Community.” (§ 10 all caps removed.) This indicates that the Sunshine Entities are the landlord.

Plaintiffs argue that a party may “sue a third party for their actions that are attributable to the landlord,” citing *Nativi v. Deutsche Bank* (2014) 223 Cal.App.4th 261.) Plaintiffs do not provide a pin cite as to where in the almost 60-page opinion this statement of law is made. The Court notes that case did not involve claims against a third party but instead was limited to claims made against the landlord and the landlord’s successor in interest of the property. As such, it cannot stand for the claim asserted by Plaintiffs. “[I]t is well established that cases do not stand for propositions not addressed therein: ‘It is axiomatic ... that a decision does not stand for a proposition not considered by the court.’” (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 664 quoting *Agnew v. State Bd. of Equalization* (1999) 21 Cal.4th 310, 332.)

Likewise, Plaintiffs’ citation to *People v. Pacific Landmark, LLC* (2005) 129 Cal.App.4th 1203 and *People v. Brawn* (2020) 49 Cal.App.5th 342 do not support Plaintiffs’ position. Neither of those cases involve a claim for breach of the covenant of quiet enjoyment. Instead, they involve nuisance claims.

While it may be true that a breach of the covenant of quiet enjoyment may be premised on the activities of a third party, the claim is still one against the landlord. (*Andrews*, *supra*, 125 Cal.App.4th at 588-89.) It is not a claim against the third party for breach of the covenant which is contained in the

lease with the landlord.

Defendant's demurrer to the breach of covenant of quiet enjoyment cause of action is **sustained**.

Wrongful Eviction

While California recognizes the tort of wrongful eviction, this is also a cause of action that is properly directed toward a landlord – not an employee thereof. (*Nativi*, supra, 223 Cal.App.4th at 293-94.) Again, Mr. Figueroa is not alleged to be the landlord. As such, this cause of action is not properly asserted against him.

Defendant's demurrer to the wrongful eviction cause of action is **sustained**.

Elder Abuse

The elements of a cause of action for Elder Abuse based on neglect are: (1) defendant had a substantial caretaking or custodial relationship with plaintiff, involving ongoing responsibility for plaintiff's basic needs, which an able-bodied and fully competent adult would ordinarily be capable of managing without assistance; (2) the plaintiff was 65 years of age or older while in defendant's care or custody, (3) that defendant failed to use the degree of care that a reasonable person in the same situation would have used in providing for plaintiff's basic needs, (4) that plaintiff was harmed, and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (*See* Welf. & Inst. Code §§ 15610 *et seq.*; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.)

As the California Supreme Court has determined, the Elder Abuse "Act does not apply unless the defendant health care provider had a substantial caretaking or custodial relationship, involving ongoing responsibility for one or more basic needs, with the elder patient." (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152.) As the Court explained, it is the "nature of the elder or dependent adult's relationship with the defendant – not the defendant's professional standing – that make the defendant potentially liable for neglect." (*Ibid.*)

Neglect under the Elder Abuse Act, as relevant here, is defined to mean: "The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise." (Welf. & Inst. Code § 15610.57(a)(1).) Complementing this definition "is the statute's explicitly nonexhaustive list of 'neglect' examples," including "failures 'to assist in personal hygiene' or to provide 'food, clothing, or shelter'; 'to provide medical care for physical and mental health needs'; 'to protect from health and safety hazards'; and 'to prevent malnutrition or dehydration.'" (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 156 internal citations omitted.)

What this list of examples "seem[s] to contemplate is the existence of a robust caretaking or custodial relationship – that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance." (*Id.* at 158.) "One would not normally expect an able-bodied and fully competent adult to depend on another for 'assist[ance] [with] personal hygiene' or 'protect[ion] from health and safety hazards,' any more than one would expect a party with only circumscribed, intermittent, or episodic engagement to be among

those who ‘hav[e] ... care or custody’ of someone who may be particularly vulnerable.” (*Ibid.*)

As the Court explained, its prior case law “illustrates the type of caregiving or custodial relationship that the Act requires: one where a party has accepted responsibility for attending to the basic needs of an elder or dependent adult.” (*Id.* at 161.) The phrase “care or custody” as used in the Act “evokes a bond that contrasts with a casual or temporally limited affiliation.” (*Ibid.*)

The SAC alleges that Mr. Figueroa was the executive director of Quail Lodge. There are no allegations that he provided any health or welfare services directly to Plaintiffs. Nor are there any allegations that he “assumed a significant measure of responsibility for attending to one or more of an elder’s basic needs....” Instead, the allegations are limited to a small number of interactions where he allegedly yelled at and threatened Plaintiffs and posted a 3-day notice on Ms. Duarte’s door.

Plaintiffs in opposition highlight the definition of neglect which includes the failure to provide food or shelter, but do not explain what the import of those provisions are with relation to the allegations in the SAC. Again, there are no allegations that Mr. Figueroa ever provided Plaintiffs with food or healthcare. Nor did he directly provide them with shelter. In addition, there are no allegations that the corporate landlord employers were responsible for providing food and/or healthcare to Plaintiffs.

Defendant’s demurrer to the elder abuse cause of action is **sustained**.

Negligent Hiring, Training, Supervision, & Retention

“**An employer may be liable** to a third person for the employer’s negligence in hiring or retaining an employee who is incompetent or unfit.” (*Phillips v TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139 emphasis added.) “Negligence liability will be imposed on **an employer** if it ‘knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.’” (*Ibid.* emphasis added.)

Mr. Figueroa is not alleged to be an employer of any of the people involved in this matter. Instead, Mr. Figueroa is alleged to be the employee of the Sunshine Entities. Plaintiffs fail to cite any authority which indicates that this cause of action can be asserted against an employee of an entity. Even if it could, there are no allegations that Mr. Figueroa hired, trained, or supervised any of the people involved in this matter.

Defendant’s demurrer to the negligent hiring, training, supervision, and retention cause of action is **sustained**.

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

In the conclusion of their Opposition, Plaintiffs request leave to amend without attempting to make any showing as to how they can amend to state any of the above causes of action. A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer [or motion to strike] that ‘if the Court finds the operative complaint

deficient, Plaintiff respectfully requests leave to amend....” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

However, the “Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghetesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

Thus, as this is the first time the Court has addressed the above causes of action as to this Defendant, the Court will grant leave to amend to the extent that complaint shows it is capable of amendment. “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 quoting *Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436 multiple citations omitted.)

Here, as explained in detail above, Plaintiffs causes of action for (1) breach of covenant of quiet enjoyment, (2) wrongful eviction, and (3) negligent hiring, training, supervision, and retention, are only properly asserted against the landlord. The SAC makes clear that the entity Defendants are the landlord and the Mr. Figueroa is only an employee thereof. As such, it does not appear that the SAC is capable of amendment to properly assert those claims against Mr. Figueroa. As such, leave to amend is **denied** as to those causes of action.

As Plaintiffs’ opposition asserts that they agreed to dismiss the assault cause of action, the Court **denies** leave to amend as to that cause of action as well.

Conclusion

Defendant’s Demurrer is **sustained** in full as to each cause of action. Plaintiffs are **granted leave to amend** as to the following claims:

- Intentional infliction of emotional distress
- Negligence
- Retaliation
- Elder abuse

Leave to amend is **denied** as to the following claims:

- Assault
- Breach of covenant of quiet enjoyment
- Wrongful eviction
- Negligent hiring, training, supervision, and retention.

Plaintiffs shall file any amended complaint within 10 calendar days of notice of the entry of the order on this Demurrer.

11. 9:00 AM CASE NUMBER: C24-00428

CASE NAME: KEYNA BAKER VS. 4KS INVESTMENTS LLC

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: 4KS INVESTMENTS LLC

TENTATIVE RULING:

Summary

Defendant 4KS Investments LLC Motion to Compel Individual Arbitration, Dismiss Class Claims, and Stay Proceedings, along with the Request for Judicial Notice is unopposed. As such, the motion is **granted**. The Court will execute the proposed order lodged on January 20, 2026. This matter is stayed pending arbitration. No appearance is required at the hearing on May 6, 2026.

12. 9:00 AM CASE NUMBER: C24-01054

CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP

HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1

FILED BY:

TENTATIVE RULING:

The hearing on the Motion for Summary Judgment is continued to June 3, 2026 at 9:00 a.m. No appearance is required on May 6, 2026.

13. 9:00 AM CASE NUMBER: C24-01961

CASE NAME: WILLIAM DEDMAN VS. BRIAN HOWARD

***HEARING ON MOTION IN RE: MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT**

FILED BY:

TENTATIVE RULING:

Summary:

Defendant Natalia Howard served a Motion to Disqualify the Hon. Benjamin T. Reyes II on May 4, 2026. The Motion was not filed until May 5, 2026, and there is no proof of service on file that demonstrates that Plaintiff was served as required by Court rules. Notwithstanding these procedural irregularities, and in an abundance of caution, the Court vacates this Motion pending a ruling on Defendant's Motion. No appearance is required at the hearing on May 6, 2026.

14. 9:00 AM CASE NUMBER: C24-02490

CASE NAME: SCOTT DINSDALE VS. CARDIGAN, INC.

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: CARDIGAN, INC.

***TENTATIVE RULING**

The Motion of Defendants Cardigan, Inc. and Hyundai Capital America to Compel Arbitration and Stay Action is **granted**. The parties shall submit to binding arbitration before JAMS, in accordance with the arbitration provision in the Lease and their agreement as reflected in counsel's October 17, 2025 correspondence.

The action is stayed pending completion of the arbitration, except that the Court sets an arbitration

status conference on **November 12, 2026 at 8:30 a.m. in Department 16**. The parties shall file a joint status report no later **than October 20, 2026**.

Background

Plaintiff Scott Dinsdale filed this lemon law action against Defendants on September 17, 2024. Plaintiff alleges that on or about March 30, 2024, he leased a new 2024 Hyundai Ioniq (the Vehicle) from Defendant Cardigan, Inc. During the warranty period, Plaintiff experienced certain mechanical defects in the Vehicle. (Complaint, pars. 23-24.) The complaint includes ten causes of action: (1) violation of the Consumer Legal Remedies Act ("CLRA"), (2) intentional misrepresentation, (3) concealment, (4) negligent misrepresentation, (5) breach of express warranty, (6) failure to promptly purchase product, (7) breach of the implied warranty of merchantability, (8) violation of the Rosenthal Fair Debt Collection Practices Act, (9) violations of the Unfair Competition Law, and (10) a cause action under Vehicle Code §11711. The named defendants were Cardigan, Hyundai Capital America and Philadelphia Indemnity Insurance Company, the surety that issued a Dealer bond pursuant to Vehicle Code §11711. The surety is no longer a party to the case.

Plaintiff's Lease for the Vehicle contains an arbitration provision which states in pertinent part:

In the event of a claim or dispute between you and us (including our respective agents, employees, officers, directors, affiliates, subsidiaries and parents) ("we" or "us"), whether in contract, tort, statute, or otherwise, arising under or relating to this Lease or the Leased Vehicle, your experience with us, or any resulting transaction or relationship, the claim or dispute must be resolved by binding arbitration, as described below, instead of in court. Any claim or dispute (except for a claim challenging the validity or enforceability of this Agreement to Arbitrate or the Class Action Waiver below) must be resolved by binding arbitration if either side requests it, including a claim challenging the validity or enforceability of this Agreement to Arbitrate. **THIS MEANS IF EITHER YOU OR WE CHOOSE ARBITRATION, NEITHER PARTY SHALL HAVE THE RIGHT TO LITIGATE SUCH CLAIM IN A COURT OR TO HAVE A JURY TRIAL....**

(Hafstad Decl., Ex. A, ¶ A, at p. 9 [capitalization and bold in original].)

The arbitration provision further states:

Governing Law and Rules. This Agreement to Arbitrate is governed by the Federal Arbitration Act (FAA). Arbitration must proceed only with the American Arbitration Association (AAA), JAMS, or any organization that you choose subject to our approval. The rules for the arbitration will be those in this Agreement to Arbitrate and the procedures of the chosen arbitration organization.

(Hafstad Decl., Ex. A, ¶ F, at p. 9, bold in original)

Dealer made a request for arbitration on October 7, 2025 and October 10, 2025. On October 17, 2025, Plaintiff asked whether Dealer would agree to arbitrate with JAMS, to which Dealer responded affirmatively the same day. Dealer drafted a stipulation and sent it to Plaintiff. On November 6, 2025, Plaintiff declined to participate in arbitration. (Stearns Decl. Exhs. A-D.) Accordingly, on January 6, 2026, Defendants filed this motion to compel arbitration and for a stay.

Plaintiff filed his opposition on April 23, 2026. Plaintiff does not dispute that a valid arbitration agreement exists, or that the claims alleged in the complaint fall within the scope of the agreement. Instead, he argues that Defendants have waived the right to compel arbitration. Plaintiff asks the court to deny the motion in its entirety, but if the motion is granted, Plaintiff asks that the arbitration be before JAMS.

Legal Standard

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9; *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Accordingly, whether an agreement is governed by the California Arbitration Act ("CAA") or the Federal Arbitration Act ("FAA"), courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (*Moncharsh, supra*, 3 Cal.4th at 9.) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.' " (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1247.)

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) the agreement covers the controversy or controversies in the dispute. (Code Civ. Proc., § 1281.2; see also *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-57.)

"If a court of competent jurisdiction. . .has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.)

Analysis

Existence of an Agreement to Arbitrate

A party moving to compel arbitration can meet its "initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.)

Here, Defendants meet their initial burden by attaching a copy of the arbitration agreement bearing Plaintiff's signature. (Hafstad Decl., Ex. A.) Plaintiff does not dispute that an arbitration agreement exists or that it covers his claims in this action.

Waiver

Plaintiff argues Defendant has waived its right to compel arbitration. Thus, the question is whether

Defendants knowingly relinquished the right to arbitrate by acting inconsistently with that right. "The waiver inquiry is exclusively focused on the waiving party's words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant." (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.)

In *St. Agnes v. PacifiCare of California* (2003) 31 Cal.4th 1187, 1196 (St. Agnes), the California Supreme Court adopted a multi-factor test from the Tenth Circuit opinion in *Peterson v. Shearson/American Express, Inc.* (10th Cir. 1988) 849 F.2d 464 (Peterson) wherein a court may consider: (1) whether the party's actions are inconsistent with the right to arbitrate; (2) whether the "litigation machinery has been substantially invoked" and the parties "were well into preparation of a lawsuit" before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g., taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party. (*Peterson, supra*, 849 F.2d at pp. 467-68; *St. Agnes*, at p. 1196.)

However, following the U.S. Supreme Court's decision in *Morgan v. Sundance, Inc.* (2022) 596 U.S. 411, courts may no longer condition a determination of waiver on prejudice. (*Id.* at p. 417.) The remaining Peterson factors are proper considerations in the waiver inquiry. (See *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963.)

Plaintiff's waiver argument is based on Cardigan's litigation conduct and delay. Before Cardigan ever demanded arbitration, it filed an Answer on December 12, 2024, asserting 57 affirmative defenses, none of which mentioned the arbitration agreement. On February 18, 2025, Cardigan filed a Case Management Statement that requested a non-jury trial, identified trial counsel, provided dates of unavailability for trial, did not check the box indicating a desire to participate in binding private arbitration, did not identify a motion to compel arbitration among anticipated motions, and stated Cardigan's intent to serve and complete written discovery, depositions, and expert discovery by September 2025. On August 23, 2025, Cardigan served responses to Plaintiff's written discovery and verified the responses on October 3, 2025. Cardigan first demanded arbitration on October 7, 2025, approximately 10 months after filing its Answer, and filed this motion on January 6, 2026, approximately two months after Plaintiff declined to stipulate to arbitration. After filing the motion, Cardigan continued to participate in the litigation by serving supplemental discovery responses on April 10, 2026, and producing its employee, Jhosselin Lopez Cisneros, for deposition.

Defendants respond that the record does not support a finding of waiver. Cardigan's motion to compel arbitration is the first substantive motion filed in this case. Cardigan has not filed any dispositive motions and has not requested any ruling from the Court on the merits of Plaintiff's claims. Defendants claim the absence of merit-based litigation is highly significant in the waiver determination because Courts consistently find no waiver where a party has not invoked the Court's adjudicative authority to resolve the substance of the dispute. (See, e.g., *Armstrong v. Michaels Stores, Inc.* (9th Cir. 2023) 59 F.4th 1011, 1015-1016; *Fox v. Experian Info. Sols., Inc.* (E.D. Cal. 2024) 718 F. Supp. 3d 1231, 1239.)

Defendants argue it does not matter that Cardigan participated in discovery propounded by Plaintiff

because what matters is whether it engaged the litigation machinery, which did not happen here. Defendants emphasize that Cardigan merely responded to Plaintiff's written discovery and participated in a deposition only after being ordered to do so. Contrary to Plaintiff's assertion that Cardigan knowingly and intentionally relinquished its right to arbitrate, Cardigan points out that it affirmatively invoked its right to arbitration when it asked Plaintiff to stipulate to arbitration in October 2025. (See Stearns Decl. ¶ 2-5, Exhs. B-D.) When Plaintiff later refused, Cardigan promptly filed this motion. Defendants argue this sequence of events is not fundamentally inconsistent with the right to arbitrate and instead shows a good-faith effort to enforce the arbitration agreement without the need for court intervention.

"To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Quach, supra*, 16 Cal.5th at 584.) "Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with the intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it." (*Ibid.*)

In opposing the motion, Plaintiff primarily relies on *Davis v. Shiekh Shoes, supra*, where the Court of Appeal affirmed a finding of waiver. *Davis* is distinguishable. There defendant Sheikh delayed seventeen months before moving to compel, engaged in extensive discovery after the court scheduled a jury trial, failed to oppose the plaintiff's "multiple" requests to continue trial, and ultimately stipulated to a trial continuance stating that Sheikh's counsel "require[d] additional time to complete necessary discovery and prepare for trial" and "the Parties have agreed to an extension of the trial date and related deadlines in order to complete discovery in this matter, as well as allow time to address and resolve any potential disputes" which the Court deemed "an affirmative averment that Shiekh intended to proceed to trial on the merits." (*Davis*, 84 Cal.App.5th at p. 970.) Sheikh never invoked arbitration before filing its motion to compel. The Court of Appeal observed that while "it would not have been imprudent for Shiekh to preserve its right to a jury trial and ability to conduct discovery in the event its motion proved unsuccessful, it did so without making known to the court its intent to seek arbitration. The act of preserving its rights to a jury trial and discovery while remaining silent on arbitration was inconsistent with a right to arbitrate." (*Ibid.*)

Applying the factors in *St. Agnes* to this case, Defendants' litigation conduct is insufficient to support waiver. Defendants' actions, while not entirely consistent with an intent to arbitrate, do not establish an intentional relinquishment of that right. (*Quach, supra*, 16 Cal.5th at p. 584.) Defendants engaged in only minimal actions inconsistent with the right to arbitrate. They filed an answer that did not assert arbitration as an affirmative defense and filed case management statements that demanded a non-jury trial, set forth a discovery schedule, and did not check the box indicating a willingness to participate in binding private arbitration. The probative value of the latter point is diminished as to two of the three case management statements, which were filed contemporaneously with Defendants' arbitration demand to Plaintiff.

Defendants did not substantially invoke the litigation machinery. Defendants did not file any motion seeking a determination of the merits of Plaintiff's claims, as this motion is the first substantive motion they have filed. As to discovery, it was Plaintiff who propounded it, and Defendants produced a witness for deposition only after being ordered to do so. Defendants did not request arbitration

enforcement close to a trial date (no trial date has been set and the next CMC is not scheduled until August 3, 2026). Defendants did not attempt to take advantage of judicial discovery procedures unavailable in arbitration as their participation was limited to responding to Plaintiff's discovery and complying with a court order. Although Defendants demanded arbitration approximately ten months after appearing, that alone is not dispositive. Defendants invoked arbitration on October 7, 2025, agreed to JAMS on October 17, 2025 and drafted a stipulation memorializing that agreement, then filed this motion approximately two months after Plaintiff would not stipulate.

Proof by clear and convincing evidence is "a heavy burden, far in excess of the preponderance sufficient for most civil litigation." (*Christian Research Institute v. Alnor* (2007) 148 Cal.App.4th 71, 84.) The California Supreme Court has stated, "doubtful cases will be decided against a waiver." (*Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 31.)

The Court does not find waiver by clear and convincing evidence on this record.

Forum

If the Court does not find waiver, Plaintiff requests that the matter be ordered to arbitration before JAMS. (Opp. at p. 8.) Although Defendants' Reply does not address the request, the Court finds JAMS to be the appropriate forum for two reasons. First, the arbitration agreement itself permits the customer to choose the arbitration organization, identifying AAA and JAMS as pre-approved options. (Hafstad Decl., Ex. A, ¶ F, at p. 9.) Plaintiff has selected JAMS, and the contract authorizes that selection.

Second, the parties previously agreed to JAMS during their pre-motion stipulation discussions. When Plaintiff inquired on October 17, 2025 whether Cardigan would arbitrate before JAMS, Cardigan's counsel responded the same day that Defendants were "amenable to JAMS." (Stearns Decl., Exh. B.) Cardigan thereafter drafted and transmitted a stipulation memorializing that agreement. (*Id.*, Exhs. C–D.) The Court will therefore order arbitration to proceed before JAMS.

Order

For the foregoing reasons, the motion is **granted**. The parties shall submit to binding arbitration before JAMS. The action is stayed pending completion of the arbitration, except that the Court sets an arbitration status conference on **November 12, 2026 at 8:30 a.m. in Department 16**. The parties are ordered to file a joint status report no later than **October 20, 2026**.

15. 9:00 AM CASE NUMBER: C24-02810
CASE NAME: DOMINGA ELEANOR ULIBARRY JIMENEZ VS. TERRICE WARREN
***HEARING ON MOTION IN RE: ORDER IMPOSING SANCTIONS**
FILED BY: ULIBARRY JIMENEZ, DOMINGA ELEANOR
TENTATIVE RULING:

Summary

Plaintiff Dominga Eleanor Ulibarry Jimenez Motion for an order imposing issue sanctions and evidence

sanctions against Defendant Terrrice Warren, and imposing a monetary sanction in the amount of \$2,450 against defendant, for failure to obey the order of this court dated October 29, 2025, compelling responses to plaintiff's special interrogatories, requests for admissions, and demand for production of documents, is unopposed. As such, the Motion is granted.

The Court will execute the proposed order lodged by Plaintiff's counsel on December 18, 2025. No appearance is required at the hearing on May 6, 2026.

16. 9:00 AM CASE NUMBER: C24-03036
CASE NAME: ARLENE ROSITA MUNOZ, AN INDIVIDUAL AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATE VS. SHIV RESORT, INC., A CALIFORNIA CORPORATION
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: SHIV RESORT, INC., A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is a motion to compel arbitration filed by defendant Shiv Resort, Inc. doing business as Bridges Golf Club. For the reasons set forth, the motion is **denied**.

Background

Plaintiff Arlene Munoz was employed by defendant Shiv Resort doing business as Bridges Golf Club ("Bridges" for convenience) from September 2022 to January 2024. She was a non-exempt, hourly employee. She filed her complaint initiating this action on November 12, 2024 and filed the operative first amended complaint ("FAC") on March 27, 2025. The FAC alleges a number of causes of action for violation of the Labor Code and other wage and hour laws. Plaintiff asserts claims individually, as a putative class representative, and as an "aggrieved employee" under the Private Attorney General Act, Labor Code section 2698 *et seq.* ("PAGA").

Plaintiff first served Bridges by serving Bridges with the FAC by a notice and acknowledgement of receipt dated April 9, 2025, which shows counsel for Bridges signed on April 29, 2025. Bridges filed an answer to the FAC on May 29, 2025, asserting as its fifteenth affirmative defense the existence of an arbitration agreement that required Plaintiff's claims to be resolved by binding arbitration. (Khakh Decl. Exh. A.) Bridges filed a CMC statement on June 9, 2025 which asserted arbitration as an applicable method of alternative dispute resolution and stated Bridges' intention to file a motion to compel arbitration. (6/9/2025 CMC Stmt. pp. 3, 4.)

The Court held another case management conference on September 19, 2025. (Khakh Decl. ¶ 6.) A stay of discovery was in effect, and the minute order from that CMC conference provides that if the motion to compel arbitration was not filed within seven days of the September 19, 2025 CMC, the stay of discovery would be lifted "WITH PROVISIONS," stating "THE PROVISION IS WHEN THE MOTION GETS FILED TO COMPEL ARBITRATION THE DISCOVERY WILL BE STAYED REGARDING THE ISSUES RAISED." (Khakh Decl. Exh. B.) When the discovery stay was lifted, Plaintiff propounded a series of written discovery requests to Bridges, to which Bridges responded before the discovery stay was reimposed when Bridges filed its motion to compel arbitration. (Khakh Decl. ¶¶ 7, 8.)

Bridges filed its motion to compel arbitration on November 21, 2025. The motion was originally set for May 28, 2026 in Department 39. On January 2, 2026, Bridges substituted new counsel, and in March 2026, this case was reassigned to Department 16. The motion to compel arbitration was reset to be heard on May 6, 2026 in Department 16.

Bridges moves to compel arbitration of Plaintiff's individual PAGA claims, to dismiss Plaintiff's class claims, and to stay the action, including Plaintiff's non-individual PAGA claims, pending completion of the arbitration. The motion is based on the Dispute Resolution Agreement attached as Exhibit A to the Hood Declaration in support of the motion (the "Arbitration Agreement"). Plaintiff opposes the motion.

Procedure and Burden of Proof on Motion to Compel Arbitration

Bridges' motion cites the Federal Arbitration Act, 9 U.S.C. section 1, *et seq.* ("FAA") as well as the California Arbitration Act, Code of Civil Procedure section 1280 *et seq.* ("CAA") as the legal authority on which the motion is brought. Whether the arbitration agreement is governed by the FAA or the CAA, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law, including whether defenses to enforcement of a contract, such as unconscionability, bar the enforcement of the arbitration agreement, as discussed in more detail below. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582.)

The party moving to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.]" (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) (*See also Rosenthal, supra*, 14 Cal.4th at 413.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Engalla, supra*, 15 Cal.4th at 972.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to its enforcement. (*Rosenthal, supra*, 14 Cal.4th at 413; *Alvarez v. Altamed Health Services Corp., supra*, 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code Civ. Proc. § 1281.)

Preliminary Issues

A. Waiver of the Right to Compel Arbitration

Plaintiff argues that Bridges waived the right to compel arbitration. In *Quach, supra*, 16 Cal.5th 562, the Court held that "regardless of whether the procedural requirements of the FAA or the CAA apply in these proceedings, our determination of whether [defendant] has lost its right to compel arbitration as a result of its litigation-related conduct is governed by generally applicable state law contract principles." (*Id.*) The Court set forth the standards for demonstrating waiver: "To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it." (*Id.* at 572, 584 [emphasis added].) The "clear and convincing evidence" standard of proof requires a showing that it is "highly probable" that the fact is true. (*Id.* at 584.)

Proof of waiver can be satisfied by evidence of words of the defendant expressing "an intent to relinquish the right" to arbitrate or with evidence that the defendant's conduct was "so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude the party had abandoned" the right to compel arbitration. (*Id.* [emphasis added].) The exclusive focus of the determination of waiver is the waiving party's conduct; "neither the effect of that conduct on the

party seeking to avoid enforcement of the contractual right nor that party's subjective evaluation of the waiving party's intent is relevant. [Citation omitted.]" (*Id.* at 585.)

Plaintiff argues that the defendant's delay in filing the motion to compel arbitration has resulted in the motion being heard "two years after the initial complaint was filed." (Opp. p. 5, ll. 3-4.) The motion is being heard one year and six months after the initial complaint was filed. Plaintiff waited for five months after filing the action before it served Bridges. That delay cannot be attributed to any conduct of Bridges.

Arguably, there was a six-month delay between Bridges first being served and the date the motion was filed. The fact that the Court's congested calendars did not allow the motion to be heard for six months after filing is also not a delay that the Court can attribute to Bridges' conduct, nor does the Court find that Bridges' conduct in this regard is clear and convincing evidence that Bridges abandoned the right to arbitrate.

Among other facts in *Quach* that supported a finding of waiver in that case, the defendant answered the complaint, asserting as an affirmative defense that the plaintiff should be compelled to arbitrate his claims. (*Quach, supra*, 16 Cal.5th at 570.) The defendant failed to check the box on its CMC statement that it was willing to participate in binding arbitration. (*Id.*) The defendant initiated (not just responded to) formal discovery, serving form interrogatories, special interrogatories, requests for admissions, and a request for production of documents. (*Id.*) The defendant propounded a second round of discovery and took the plaintiff's deposition. (*Id.*) Only after the case had been pending for 13 months, after the defendant initiated and pursued these multiple rounds of discovery, and after a trial date was set with the defendant's apparent acquiescence did the defendant file a motion to compel arbitration. (*Id.* at 571.) The Court found that these facts demonstrated by clear and convincing evidence that the defendant was aware of its right to require arbitration of the plaintiff's claims, but its words and conduct evidenced an intentional abandonment of its right to compel plaintiff to arbitration. (*Id.* at 586-587.)

Plaintiff also relies on *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956 to argue waiver here. Applying the standard of the federal decisions as the FAA applied in that case, the Court evaluated the defendant's conduct and agreed with the trial court's determination that the defendant acted in a manner that was inconsistent with an intent to arbitrate. (*Davis, supra*, 84 Cal.App.5th at 967-972.) The summary of facts shows that the defendant corporation delayed 17 months from the date it was served with the complaint before it filed the motion to compel arbitration. While it was represented by counsel, its counsel demanded that the Court set a trial date and agreed to a discovery schedule. (*Id.* at 969-970.) The defendant's original counsel withdrew, and the corporation did not retain new counsel for almost seven months. The defendant did not raise arbitration at various court appearances or in responding to the plaintiff's discovery and continued to remain silent on arbitration when the plaintiff requested continuances of the trial date. (*Id.* at 970.)

The facts of this case are demonstrably different from those in *Quach* and *Davis*. In the five-month period between the date it filed its answer and the date it filed this motion, Bridges repeatedly stated that Plaintiff was bound to arbitrate her claims in its answer filed in May 2025, when it made its first CMC appearance in June 2025, when it appeared again in September 2025, and when it responded to Plaintiff's written discovery. (Rossi Decl. ¶ 4.) Bridges did not propound any discovery and took no

depositions. Bridges did not conceal the existence of the arbitration agreement and its intent to move to compel arbitration of Plaintiff's claims, unlike the defendant in *Davis*. It consistently in its answer and at the CMCs. The delay between when Bridges was served with the FAC and when it filed the motion to compel was seven months, and six months from the date it answered and asserted arbitration as an affirmative defense. There has been no trial date set. The Court cannot conclude that the delay here is clear and convincing evidence of conduct "so inconsistent" with an intention to arbitrate the claims as to demonstrate Bridges abandoned arbitration. (*Quach, supra*, 16 Cal.5th at 584.) Bridges did not waive its right to compel arbitration.

B. Delegation Clause

In the introduction to the Argument in the Bridges reply, Bridges quotes a delegation clause from the Arbitration Agreement and asserts Plaintiff's challenges to the Arbitration Agreement should be decided by an arbitrator. Raising the delegation clause for the first time in a reply violates the law and motion rules and is improper under case authority. (Cal. R. Ct. 3.1112(d)(3) [motion must state "the basis for the motion and the relief sought"]; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604 [addressing new points in reply brief on appeal, stating "The rule is that points raised in a reply brief for the first time will not be considered unless good cause is shown for failure to present them before."].)

Defendant's moving papers ask the Court to enforce the Arbitration Agreement, argue why the Arbitration Agreement covers the claims asserted in Plaintiff's FAC, and argue why the Arbitration Agreement should be enforced by the Court under the standards of California case law, including based on defendant's contention that the Arbitration Agreement meets the standards for enforcement under *Armendariz* and is therefore not unconscionable. The moving papers make no reference to the delegation clause. Other than quoting the delegation clause and making a single statement that the arbitrator should decide Plaintiff's challenges, Bridges cites no legal authorities regarding the standards for enforcing a delegation clause of their application to the clause in this case. Bridges' arguments are all directed to the Court for interpretation and enforcement of the Arbitration Agreement.

The application of a delegation clause is not jurisdictional and may be waived or forfeited. "[E]ven if we assume that the parties did agree to delegate the section 1281.98 issue to the arbitrator, a contractual right to an arbitral resolution of that issue does not of itself divest the court of jurisdiction: the parties may abandon—or forfeit—the contractual right and submit the matter to the court. [Citations omitted; emphasis added.]" (*Williams v. West Coast Hospitals, Inc.* (2022) 86 Cal. App. 5th 1054, 1071, overruled on other grounds in *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, 349.) The Court in *Williams* found a waiver of the delegation clause in the trial court and that the defendant had not preserved the issue on appeal: "In petitioning the trial court to compel arbitration, West Coast did not ask the trial court to defer the question of arbitrability under the agreement to the arbitrator—it called upon the trial court to decide the question of arbitrability and received a favorable result as to Ann and John. Indeed, West Coast states in its opening brief that the trial court found that its arbitration agreement was 'valid and enforceable.' In opposing plaintiffs' underlying motion, West Coast made no reference to any delegation clause. West Coast accordingly forfeited the issue by failing to raise it in the trial court. [Citations omitted.]" (*Id.* at 1072.)

The Court finds Bridges has forfeited its right to have the arbitrator decide arbitrability, and the Court therefore addresses the enforceability of the Arbitration Agreement.

Analysis

A. Existence of An Arbitration Agreement Signed by Plaintiff

Under Civil Code section 1633.5, whether the parties have agreed to conduct a transaction by electronic means is "determined from the context and surrounding circumstances, including the parties' conduct." (Civ. Code § 1633.5(b).) To authenticate an electronic signature, the party must present evidence demonstrating the electronic signature is attributable to the person which is shown by demonstrating "it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (Civ. Code, § 1633.9(a) [emphasis added]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843.) Authenticity may be established by circumstantial evidence. (*Ruiz, supra*, 232 Cal.App.4th at 843.)

Bridges' motion is supported by the Hood Declaration which describes the process by which a prospective employee applies for employment, and once hired, the methods by which the employee must create an account using a unique name and a password the employee herself must create. (Hood Decl. ¶¶ 5, 8, 9.) She describes the operation of the TalentReef onboarding electronic portal by which employees who have been hired are supplied with documents they must sign electronically to complete their initial employee paperwork, including the Arbitration Agreement. (Hood Decl. ¶¶ 5-10.) Hood confirms that employees were required to sign the Arbitration Agreement as a condition of their employment with the onboarding document package. (Hood Decl. ¶¶ 10-12.) Bridges' motion is also supported by the declaration of counsel explaining that the "Company" identified in the Arbitration Agreement as "The Bridges" is the fictitious business name of Shiv Resort, Inc., which she points out is acknowledged by Plaintiff who sued Shiv Resort, Inc. dba Bridges Golf Club as Plaintiff's employer. There appears to be no dispute between the parties that Bridges is the company she worked for, as the "Terms of Employment" agreement attached to the Khakh declaration which Plaintiff acknowledges are part of Plaintiff's employment records was also entered into with the company "The Bridges." (Khakh Decl. ¶ 10, Exh. D.)

While the opposition refers to the Arbitration Agreement as the "purported Arbitration Agreement" and while Munoz declares she does not remember being asked to sign the Arbitration Agreement (Munoz Decl. ¶ 9), she does not deny executing the Arbitration Agreement or that the electronic signature appearing on the Arbitration Agreement dated September 9, 2022 is her genuine electronic signature. The opposition makes no argument that the Arbitration Agreement is not authentic and that Plaintiff did not sign it electronically. Notably, the Khakh Declaration in opposition to the motion attaches another document bearing Plaintiff's electronic signature with the same date and a time stamp close in time, but a few minutes later, than the time stamp on the Arbitration Agreement. (*Compare* Khakh Decl. Exh. D "Terms of Employment" to Hood Decl. Exh. A.)

The Court finds that Bridges has demonstrated by a preponderance of the evidence that there is an arbitration agreement between Bridges and Plaintiff and that the Arbitration Agreement was signed by Plaintiff.

B. Unconscionability Defense to Enforcement

The burden of proof of unconscionability is on Plaintiff as the party resisting arbitration. (*Rosenthal, supra*, 14 Cal.4th at 413; *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Both procedural and substantive unconscionability must be proven to render a contract unenforceable, based on a sliding scale such that the greater the procedural unconscionability, the lesser the required showing of substantive unconscionability, and vice versa. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114.) (*See also OTO, supra*, 8 Cal.5th at 125.) "Unconscionability is judged 'at the time [the contract is] made.' [Citations omitted.]" (*Cook v. University of Southern California* (2024) 102 Cal.App.5th 312, 322, fn. 2.)

1. Procedural Unconscionability

Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra*, 8 Cal.5th at 126.) The analysis of whether there is procedural unconscionability typically begins with a determination whether the agreement is a contract of adhesion, typically a non-negotiable form agreement drafted by the party seeking to compel arbitration. (*OTO, supra*, 8 Cal.5th at 126.) Surprise for purposes of procedural unconscionability arises where the allegedly unconscionable term "is hidden within a prolix printed form." (*Pinnacle, supra*, 55 Cal.4th at 247.)

a. Contract of Adhesion; Required Agreement

Hood confirms in her declaration that employees were required to sign the Arbitration Agreement as part of their employment ongoing package. (Hood Decl. ¶ 11.) The contract appears to be a standard form contract, and there is no evidence that its terms were negotiable; it qualifies as a contract of adhesion.

The document was presented with a number of other documents that Plaintiff was required to sign as part of her onboarding package. (Munoz Decl. ¶ 7; Khakh Decl. ¶¶ 8, 11; Hood Decl. ¶¶ 10, 11.) Munoz confirms she was instructed to fill out paperwork through TalentReef. (Munoz Decl. ¶ 5.) Munoz declares she could not download the documents. (Munoz Decl. ¶ 7.) She declares she was provided with a lot of electronic documents as part of the onboarding process, and that no one explained the documents to her, or explained to her that she was waiving the right to bring class claims or to have her claims heard in a court. (Munoz Decl. ¶¶ 6-10.) Nevertheless, there is no evidence of the type of "sharp practices" the courts in other cases have found may produce an extraordinary or exceptional degree of procedural unconscionability. (*OTO, supra*, 8 Cal.5th at 129; *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245 [finding no "sharp practices," stating the employee in that case "was not lied to, placed under duress, or otherwise manipulated into signing the arbitration agreement. The adhesive nature of the employment contract requires us to be 'particularly attuned' to her claim of unconscionability [citation omitted], but we do not subject the contract to the same degree of scrutiny as '[c]ontracts of adhesion that involve surprise or other sharp practices.' [Citation omitted]."]].)

The Arbitration Agreement was not "hidden in a prolix" document as in *OTO*, in which the font was in a size the California Supreme Court found to be nearly illegible. (*OTO, supra*, 8 Cal.5th at 126, 128.) The Arbitration Agreement was a standalone document, six pages in length, with bold faced topic headings and spacing between the paragraphs, as well as an all capitalized, bold-type face and underlined warning just above the signature by which the signatory acknowledged "giving up certain

rights." (Hood Decl. Exh. A, p. 6.) The fact that no one explained the documents to Plaintiff does not support a finding of procedural unconscionability. Plaintiff's opposition cites no authority that requires an employer to unilaterally undertake to explain an arbitration agreement and its legal ramifications to an employee before the employee signs. While Munoz vaguely states she "felt" she had to sign "as soon as possible," based on what she was told (without stating what she was told) and based on "how the manager responsible for onboarding acted," she does not state that Bridges gave her any particular time limit to sign, and she does not provide any specific evidence of statements or conduct by Bridges supporting her "feeling" that she had to sign quickly. (Munoz Decl. ¶ 8.)

The adhesive nature of the Arbitration Agreement and that it was mandated by the employer establishes some degree of oppression, and a limited degree of procedural unconscionability based on the inherent economic pressure on a prospective employee to agree in order to gain employment. (*Armendariz, supra*, 24 Cal.4th at 113 [defining contract of adhesion] and 115 ["few employees are in a position to refuse a job because of an arbitration requirement"]; *Alvarez, supra*, 60 Cal.App.5th at 591 [when "arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration," which "alone is a fairly low level of procedural unconscionability."]; Munoz Decl. ¶ 8 [she had to sign documents so she could begin her employment].) The Court finds there is some degree of procedural unconscionability for these reasons and considers the grounds for substantive unconscionability raised by Plaintiff.

2. Substantive Unconscionability

"Substantive unconscionability examines the fairness of a contract's terms. This analysis 'ensures that contracts, particularly contracts of adhesion, do not impose terms that have been variously described as "[o]verly harsh[]" [citation omitted], "[u]nduly oppressive[]" [citation omitted], "[s]o one-sided as to 'shock the conscience' [] [citation omitted], or "unfairly one-sided" [citation omitted].) All of these formulations point to the central idea that the unconscionability doctrine is concerned not with "a simple old-fashioned bad bargain" [citation], but with terms that are 'unreasonably favorable to the more powerful party.' " [Citation, some internal quotation marks omitted.] (*OTO, supra*, at 129-130.) In general, the arbitration agreement must be so overly harsh, unduly oppressive, and unreasonably favorable to the more powerful party that they undermine the neutrality of the agreement to arbitrate in order to be found substantively unconscionable. (*Armendariz, supra*, 24 Cal.4th at 117.)

a. Terms of Employment Agreement

Plaintiff argues that the "Terms of Employment" agreement (Khakh Exh. D) which Plaintiff signed concurrently with the Arbitration Agreement should be read together with the Arbitration Agreement. She argues that the Terms of Employment in effect creates a "carve out" from the Arbitration Agreement which allows Bridges to obtain permanent injunctive relief in Court for a violation of the Terms of Employment involving the disclosure of information defined as "confidential" under that document, making the Arbitration Agreement one-sided and nonmutual. She argues the Terms of Employment and Arbitration Agreement must be construed together to determine whether the Arbitration Agreement is unconscionable because the agreement to arbitrate lacks mutuality.

b. Construction of Agreements Together

Civil Code section 1642 and case law addressing arbitration agreements executed concurrently with

other agreements between the employee and employer require the Court to construe the Arbitration Agreement and Terms of Employment together, as the documents were executed concurrently as part of Plaintiff's commencement of her employment. (*Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 486, 490-491; *Gurganus, supra*, 115 Cal.App.5th 327, 334-335; *Silva v. Cross Country Healthcare, Inc.* (2025) 111 Cal.App.5th 1311, 1322-1323.) Civil Code section 1642 provides: "Several contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction, are to be taken together." If not expressly stated, courts may infer an intent that multiple documents be read together "by looking to 'extrinsic evidence' of the circumstances enumerated in section 1642. [Citations omitted.]" (*Silva, supra*, 111 Cal.App.5th at 1322.)

The time stamps on the Arbitration Agreement and Terms of Employment indicate that the Arbitration Agreement, which has no integration clause, was signed first, followed by the Terms of Employment, with a merger clause, 13 minutes later. (Hood Decl. Exh. A; Khakh Decl. Exh. D.) As in *Alberto*, *Silva*, and *Gurganus*, the documents were signed between the same parties. There is no genuine dispute that the documents were part of the same transaction, namely part of Plaintiff's offer and acceptance of employment with Bridges, and they relate to the same matters, specifically how disputes between the parties are to be resolved. (*See Silva, supra*, 111 Cal.App.5th at 1322-1323.)

In *Alberto*, the Court of Appeal affirmed an order denying a petition to compel arbitration. The Court found that "[t]he [arbitration] agreement, read together – as it must be – with other contracts signed as part of Alberto's hiring, contained unconscionable terms." (*Alberto, supra*, 91 Cal.App.5th at 486.) In *Alberto*, the arbitration agreement and confidentiality agreement were executed the same day, and "were both separate aspects of a single primary transaction – Alberto's hiring. They both governed, ultimately, the same issue – how to resolve disputes arising between Alberto and Cambrian arising from Alberto's employment." (*Id.* at 490-491.) (*See also Gurganus, supra*, 115 Cal.App.5th at 334-335.)

Ahern v. Asset Management Consultants, Inc. (2022) 74 Cal. App. 5th 675 cited by Bridges is distinguishable for the reasons explained in *Alberto*. (*Alberto, supra*, 91 Cal.App.5th at 491 n. 2 [court in *Ahern* found "that the two separate agreements covered 'distinct and successive phases' of a real estate transaction, with nothing 'suggesting arbitration was mandatory' for disputes relating to the agreement without an arbitration clause. [Citation omitted.]".]) *Subaru of America, Inc. v. Putnam Automotive, Inc.* (2021) 60 Cal.App.5th 829 is factually inapposite. It addressed a trial court judgment confirming an arbitration award, in which the Court rejected a dealer's argument that a Satellite Service Agreement should have been construed with the Burlingame Dealer Agreement as a single contract, such that it would fall within the exemption from the FAA under the federal Motor Vehicle Franchise Contract Arbitration Fairness Act. (*Id.* at 838-842 [concluding that the two agreements were intended to be separate].) Notably, Bridges does not address *Alberto*, *Silva*, or *Gurganus* in the reply.

c. Terms of Employment and Relation to Claims Subject to Arbitration

The substantive provisions of the Terms of Employment in this case regarding the employer's right to obtain injunctive relief are similar to, and operate similarly to, those in *Alberto* and *Silva*, resulting in similar lack of mutuality substantially benefiting the employer that the Courts in those cases found was unconscionable. (*Alberto, supra*, 91 Cal.App.5th at 492-493; *Silva, supra*, 111 Cal.App.5th at 1328-1330.) The Terms of Employment includes Sections 2 (Confidential Information), 3 (Conflicting

Employment), 4 (Returning Company Documents), 5 (Notification of New Employer), 6 (Solicitation of Employees), and 7 (Other Policies). (Khakh Decl. Exh. D.) "Other Policies" in Section 7 states: "I [the employee] agree to comply with all Company policies, rules and procedures that are generally applicable to Company employees." (*Id.* [emphasis added].)

The Equitable Remedies provision (paragraph 8) states that the employee agrees it would be "impossible or inadequate" to measure damages from a breach of Sections 2 through 7, including the "Other Policies" provision, and that the employee therefore agrees "that upon breach of any of such Sections, Company will have available, in addition to any other right or remedy available, the right to obtain an injunction from a court of competent jurisdiction restraining such breach or threatened breach and to specific performance of such provision of the Terms of Employment." (Khakh Decl. Exh. D [Terms of Employment Section 8].) The Equitable Relief provision continues: "I further agree that no bond or surety shall be required in order to obtain such relief and I hereby consent to the issuance of such injunction and to any order of specific performance." (*Id.* [emphasis added].) Further, Plaintiff "expressly consent[s] to the personal jurisdiction of the state and federal courts located [in California] for any lawsuit filed there by the Company arising from or related to my employment." (Khakh Decl. Exh. D [Terms of Employment Section 9].)

The Arbitration Agreement provision for "Claims Not Covered by this Agreement" makes "claims that both Employee and Company agree are not covered by the Agreement" excluded from its scope. (Hood Decl. Exh. A [Arb. Agmt. p. 2].) Reading these documents together, the Court concludes the claims subject to the Terms of Employment are excluded from arbitration, and that the exclusion together with the other substantive terms of the Equitable Relief provision in the Terms of Employment renders the Arbitration Agreement highly substantively unconscionable.

d. Lack of Mutuality and Overly Harsh, One-Sided Advance Consent to Injunction, Specific Performance, and No Bond

As in *Alberto, Silva*, and *Gurganus*, the effect of these agreements together is that the employee is required to arbitrate almost all claims the employee may have against Bridges, with limited exceptions, while claims that Bridges is most likely to bring, including claims for violation of Company rules, procedures, and policies, are allowed to be litigated in Court. "Lack of mutuality exists when an arbitration agreement directs a wide range of claims that would typically be brought by an *employee* into arbitration, but specifically excludes from arbitration claims that would typically be brought by an *employer*, including claims related to intellectual property rights and those for equitable relief related to unfair competition or the disclosure of trade secrets or confidential information. [Citation omitted.]" (*Gurganus, supra*, 115 Cal.App.5th at 336 [italics in original].) (*See also Silva, supra*, 111 Cal.App.5th at 1328.) (*See also Ramirez, supra*, 16 Cal.5th at 498 [finding "well supported" the Court of Appeal determination that an arbitration agreement lacked mutuality where claims likely to be brought by the employer would be litigated in a court while likely employee claims would be decided in arbitration, with the lack of mutuality being "indicative of substantive unconscionability."].)

Further, even if the Court assumed " 'business realities' might justify giving an employer access to the courts to seek injunctive relief," the Equitable Relief provision broadly covers almost any claim Bridges might bring against the employee by giving Bridges the right to injunctive relief and specific performance, to which the employee consents in advance, for any violation of any Company policy,

rule or procedure, as well as violation of the confidentiality, trade secrets, and nonsolicitation provisions. (*Silva, supra*, 111 Cal.App.5th at 1328-1329; *Gurganus, supra*, 115 Cal.App.5th at 337.) The Equitable Relief provision is not limited to a temporary restraining or preliminary injunction, interim relief that might be available under Code of Civil Procedure section 1281.8, but rather on its face extends to a permanent injunction and specific performance. (Khakh Decl. Exh. D [Terms of Employment Section 8].)

Further, under the Equitable Relief provision, the employee consents in advance to an injunction or specific performance for any breach and without Bridges having to post a bond or surety. (Khakh Decl. Exh. D [Terms of Employment Section 8].) Such a provision has been held to be substantively unconscionable in *Gurganus, Silva*, and *Alberto*. (*Gurganus, supra*, 115 Cal.App.5th at 338; *Silva, supra*, 111 Cal.App.5th at 1329-1330; *Alberto, supra*, 91 Cal.App.5th at 492 ["[A]dditional provisions that waive the employer's need to obtain a bond before seeking an injunction, waive the employer's need to show irreparable harm, and require an employee to consent to an immediate injunction *are* unconscionable."].)

The Court in *Silva* concluded features of the contracts similar to those found in this case "have significant substantive unconscionability separately and together," and that such a degree of substantive unconscionability coupled with some degree of procedural unconscionability as an adhesive contract were sufficient to meet the opposing party's burden to show the Arbitration Agreement unconscionable. (*Id.* at 1330 [emphasis added, stating the Court did not need to address any other arguments for why the agreement was unconscionable].) (*See also Gurganus, supra*, 115 Cal.App.5th at 338 [finding on similar grounds based on similar terms that "the lack of mutuality is substantively unconscionable to a high degree as IGS has failed to provide a justification for such expansive carve-outs in its favor."].) Bridges has not offered any business or other justifications for the provisions, beyond what the Court may assume regarding "business realities" for protecting intellectual property or confidential information. (*Silva, supra*, 111 Cal.App.5th at 1328-1329.) (*See also Ramirez, supra*, 16 Cal.5th at 498-499 [finding an arbitration agreement excluding injunctive relief, including a permanent injunction, provided protection for the employer that went "beyond that provided by the Code of Civil Procedure provision" for preliminary injunctive relief].) As set forth above, Bridges does not address any of these decisions in its reply.

3. Conclusion as to Unconscionability and Issue of Severability

The Court finds under the foregoing authorities that there is some degree of procedural unconscionability and a high degree of substantive unconscionability of the Arbitration Agreement, construed with the Terms of Employment.

Both the Arbitration Agreement and Terms of Employment contain severability clauses. Bridges argues that if the Court finds any term unconscionable, the Court should sever the provision and enforce the remainder of the Arbitration Agreement. Bridges does not suggest, however, what provision could be severed to remedy the unconscionability found here.

Civil Code section 1670.5(a) provides the Court alternatives when it finds a contract provision to be unconscionable. "If a contractual clause is found unconscionable, the court may, in its discretion, choose to do one of the following: (1) refuse to enforce the contract; (2) sever any unconscionable clause; or (3) limit the application of any clause to avoid unconscionable results. [Citation omitted.]

The 'strong legislative and judicial preference is to sever the offending term and enforce the balance of the agreement.' [Citation omitted.] Though the 'statute appears to give a trial court some discretion as to whether to sever or restrict the unconscionable provision or whether to refuse to enforce the entire agreement,' it 'also appears to contemplate the latter course only when an agreement is "permeated" by unconscionability.' [Citation omitted.]" (*Ramirez, supra*, 16 Cal.5th at 513.)

The Court set forth the appropriate standard for determining whether severance or denial of enforcement of the agreement is appropriate. "[N]o bright-line rule *requires* a court to refuse enforcement if a contract has more than one unconscionable term. Likewise, a court is not *required* to sever or restrict an unconscionable term if an agreement has only a single such term. Instead, the appropriate inquiry is qualitative and accounts for each factor *Armendariz* identified. At the outset, a court should ask whether 'the central purpose of the contract is tainted with illegality.' [Citation omitted.] If so, the contract cannot be cured, and the court should refuse to enforce it. If that is not the case, the court should go on to ask first, whether the contract's unconscionability can be cured purely through severance or restriction of its terms, or whether reformation by augmentation is necessary. [Citation omitted.] If no 'reformation is required,' the offending provision can be severed or limited, and 'the rest of the arbitration agreement left intact,' then severance or restriction is the preferred course for provisions that are collateral to the agreement's main purpose. [Citations omitted.] If unconscionability cannot be cured by extirpating or limiting the offending provisions, but instead requires augmentation to cure the unconscionability, then the court should refuse to enforce the contract. [Citation omitted.] Courts cannot 'rewrite agreements and impose terms to which neither party has agreed.' [Citation omitted.]" (*Id.* at 516 [italics in original, underscoring added].) The Court went on to state that the fact a contract's unconscionability could be cured by severance or restriction does not mean it should be, where severance "would function to condone an illegal scheme" and if "the defects in the agreement indicate that the stronger party engaged in a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. [Citation omitted.]" (*Id.* at 516-517.)

The Court finds that the Arbitration Agreement, taken together with the Terms of Employment, is permeated with unconscionability and that the agreements taken together reflect an attempt to impose arbitration on the employee claims while allowing the employer to pursue its claims in Court. Among other things, the provisions of the Terms of Employment allow the employer to pursue relief in court to enforce all Company policies, rules, and procedures plus the nonsolicitation and confidentiality provisions, through an advance consent by the employee for injunctive relief and specific performance in the employer's favor, without the employer having to prove damages are an inadequate remedy or post a bond or surety, while the employee's claims are relegated to arbitration. Indeed, it is not clear what claims the employer would bring against the employee that would be subject to arbitration and not encompassed by the sweeping provisions of the Terms of Employment.

The forum for resolution of disputes is the essence of an arbitration agreement; the unconscionable provisions of the Terms of Employment carve-out for employer claims goes to the essence of the dispute resolution process the parties agreed to and reflects "a systematic effort to impose arbitration on the weaker party not simply as an alternative to litigation, but to secure a forum that works to the stronger party's advantage. [Citation omitted.]" (*Id.* at 516-517.) Based on how the

agreements are drafted and structured, it is not clear how the Court could sever or restrict the provisions that the Court has found highly unconscionable here. The Courts in *Alberto, Silva*, and *Gurganus* did not sever and refused to enforce the arbitration agreements in those cases.

The Court exercises its discretion, in consideration of the factors set forth in *Ramirez*, to decline to enforce the Arbitration Agreement as unconscionable under Civil Code section 1670.5(a). The Court need not reach the confidentiality provision in the Arbitration Agreement in light of this ruling. The motion to compel arbitration is **denied** on this ground. Because the Court finds the Arbitration Agreement unconscionable and unenforceable, the Court need not reach the validity of the waiver of class claims contained in the unenforceable Arbitration Agreement.

Labor Code Section 229 and Iskanian Prohibition on Arbitration of PAGA Claims

Labor Code section 229 states in relevant part: " Actions to enforce the provisions of this article for the collection of due and unpaid wages claimed by an individual may be maintained without regard to the existence of any private agreement to arbitrate." Plaintiff argues that Labor Code section 229 applies and that even where an enforceable arbitration agreement exists, the statute makes claims for wages subject to judicial determination in court. (Opp. p. 13, ll. 15-22.)

A. The FAA Does Not Apply Based on the Record Before the Court

The notice of motion and motion cites the FAA as well as the CAA as the basis for the motion. The moving papers contain no argument or legal authority that the FAA applies. The Arbitration Agreement does not have any reference to the FAA. Bridges argues for the first time in its reply that the FAA applies to the Arbitration Agreement.

Bridges quotes FAA section 2 stating that the FAA applies to an arbitration agreement "evidencing a transaction involving commerce." (Reply p. 10, ll. 10-11.) But Bridges fails to address the definition of "commerce" as used in the FAA set forth in section 1: " '[C]ommerce', as herein defined, means commerce among the several States or with foreign nations, or in any Territory of the United States or in the District of Columbia, or between any such Territory and another, or between any such Territory and any State or foreign nation, or between the District of Columbia and any State or Territory or foreign nation." (9 U.S.C. § 1 [emphasis added].) (See also *Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56.)

As Bridges recognizes in the reply, the FAA "extend[s] to the full reach of Congress's Commerce Clause power" which is the regulation of interstate commerce, not purely intrastate commerce. Absent either a provision in the Arbitration Agreement that the FAA applies or an evidentiary showing demonstrating that the business of the golf club and resort is involved in interstate commerce, the FAA does not apply. (See *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal. App. 4th 1110, 1116, 1122 [parties may contractually agree that the FAA will govern the arbitration]; *Allied-Bruce Terminix Cos., Inc. v. Dobson* (1995) 513 U.S. 265, 273-274 [broadly construing "involving interstate commerce" to mean "affecting" interstate commerce, and holding the FAA governed an arbitration agreement between a homeowner and local pest control company where the treatment products and repair materials were shipped from out of state]; *Citizens Bank, supra*, 539 U.S. at 55-58 [holding FAA applied to debt restructuring agreements even though the individual transactions in that case may not have actually been in interstate commerce based on evidence that (1) Alafabco engaged in

business throughout the southeastern United States, including "to finance large construction projects in North Carolina, Tennessee, and Alabama" using substantial loans from the bank that were part of the restructuring agreements; (2) the restructured debt was secured by Alafabco's business assets which included goods assembled from out-of-state parts and raw materials; and (3) consideration of the general practice involved, including "the broad impact of commercial lending on the national economy" and that Congress has the "power to regulate that activity pursuant to the Commerce Clause".)

Bridges argues that the FAA applies because the Arbitration Agreement "concerns an employment relationship for a commercial enterprise." (Reply p. 10, ll. 21-22.) The fact Bridges operates a resort and golf club in California, the only evidence before the Court regarding the Bridges' business (Hood Decl. ¶¶ 2, 4; Durieux Decl. ¶ 2), is not evidence that its business is involved in interstate commerce under the United States Supreme Court authority and the provisions of sections 1 and 2 of the FAA.

B. Because the FAA Does Not Apply, Labor Code Section 229 Is Not Preempted

Because the FAA does not apply based on the terms of the Arbitration Agreement and lack of evidence that defendant's business is involved in interstate commerce, Labor Code section 229 is not pre-empted and bars the Court from compelling arbitration of her Labor Code wage claims. (*Garrido v. Air Liquide Industrial U.S. LP* (2015) 241 Cal.App.4th 833, 844-845 ["The FAA preempts Labor Code section 229, requiring enforcement of an arbitration agreement covering such a claim. [Citations omitted.]"]; *Perry v. Thomas* (1987) 482 U.S. 483, 491-492 [FAA pre-empts Labor Code section 229].)

This "article" in Labor Code section 229 refers to claims for collection of unpaid wages under Labor Code sections 200-244. Plaintiff's fifth, seventh, and tenth causes of action clearly fall within the scope of Labor Code section 229 and are not arbitrable on this additional ground. Those causes of action seek collection of unpaid wages based on Labor Code statutes within the article covering Labor Code sections 200-244. Bridges in its reply does not address Labor Code section 229 or its impact on the claims alleged in the FAC, relying instead on the FAA pre-emption. Because the Court has concluded the FAA does not apply, Labor Code section 229 is not preempted. On this additional ground, the fifth, seventh, and tenth causes of action are exempted from arbitration under Labor Code section 229, and the motion to compel arbitration of those claims is **denied**. (*See also Lane v. Francis Capital Mgmt. LLC* (2014) 224 Cal. App. 4th 676, 684.)

C. Because the FAA Does Not Apply, the *Iskanian* Rule Precluding Arbitration of PAGA Claims Applies

The California Supreme Court's decision in *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348 is binding authority on this Court. The United States Supreme Court's decision in *Viking River Cruises, Inc. v. Moriano* (2022) 596 U.S. 639, 646 holds that "the FAA preempts the rule of *Iskanian* insofar as it precludes division of PAGA actions into individual and non-individual claims through an agreement to arbitrate." (*Id.* at 662-663.) The California Supreme Court in *v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104 confirms the limits of the Viking River holding: "*Viking River* requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA." (*Id.* at 1119 [emphasis added].)

In cases where the FAA does not apply, California law applies, and there is no FAA preemption. (*See,*

e.g., Garrido, supra, 241 Cal.App.4th 833, 844-845; .) The *Iskanian* rule against dividing a PAGA action into individual and non-individual claims and which precludes a Court from ordering PAGA claims to arbitration in part because PAGA claims, even if based on violations of the Labor Code as to only one aggrieved employee, is a representative action on behalf of the state therefore applies. (*Villalobos v. Maersk, Inc.* (2025) 114 Cal. App. 5th 1170, 1196-1200 ["In short, California law applies, without regard to the preemption ruling in *Viking River*, so the 'rule of *Iskanian*'—that 'precludes division of PAGA actions into individual and non-individual claims through an agreement to arbitrate' [citation omitted]—does apply. In addition, under California law, the principle applied in the *Correia* line of cases—that 'an employee's predispute agreement to arbitrate PAGA claims is not enforceable without the state's consent' [citation omitted]—has not been overruled." (*Id.* at 1199.)

On this additional ground, the motion to compel arbitration of the twelfth cause of action, the PAGA cause of action for civil penalties, is denied.

17. 9:00 AM CASE NUMBER: C25-02308
CASE NAME: THE PEOPLE OF THE STATE OF CALIFORNIA, VS. ACME FILL CORP.,
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**
FILED BY: ACME FILL CORP.,
TENTATIVE RULING:

Before the Court is a motion to strike ("Motion") filed by defendant Acme Fill Corp. ("Defendant"), which seeks to strike paragraphs 45 through 50 and 80 through 84, of the first amended complaint ("Complaint") filed by plaintiff The People of the State of California by and through the Bay Area Air Quality Management District ("Plaintiff").

For the reasons set forth below, the Court's tentative ruling is to **DENY** Defendant's motion to strike.

Meet and Confer

The meet and confer requirement has been satisfied. (Thomas Bruen Decl., ¶ 2; Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

Requests for Judicial Notice

RJN ISO Motion

Defendant requests the Court to take judicial notice of the California Landfill Methane Rule ("LMR") found at California Code of Regulations, sections 95460 through 95476 and Appendix I, via Evidence Code section 452, subdivisions (b), (c), and (h). Plaintiff has not objected to this request. Defendant's request for judicial notice is granted.

RJN ISO Opposition

Plaintiff requests the Court to take judicial notice of six California Air Resource Board ("CARB") documents. (RJN ISO Opposition, ¶¶ 1-6, Exhs. A – F; Baptiste Decl., ¶¶ 1-10, Exhs. A – F.) These

documents include two staff reports (Exhs. A and E), an addendum to the final statement of reasons for rulemaking (Exh. B), an implementation guidance document (Exh. C), a final statement of reasons for rule making document (Exh. D), and a December 2025 settlement agreement between Anderson Landfill and CARB (Exh. F).

Plaintiff requests judicial notice of Exhibits A – E pursuant to Evidence Code section 452, subdivisions (b) and (c), and requests judicial notice of Exhibit F pursuant to Evidence Code section 452, subdivisions (c) and (h). All of these documents are available on the CARB website (ww2.arb.ca.gov), and Defendant has not objected to these requests. Plaintiff's requests for judicial notice are granted.

RJN ISO Reply

Defendant requests the Court to take judicial notice of a notice of an availability of modified text document, which relates to proposed amendments to the regulation on methane emissions from municipal solid waste landfills. Defendant requests judicial notice of this document pursuant to Evidence Code section 452, subdivisions (c) and (h). This document is available on the CARB website (ww2.arb.ca.gov), and Plaintiff has not objected to this request. Defendant's request for judicial notice is granted.

Background – Facts Alleged in Complaint

Plaintiff filed the original complaint in this matter on August 13, 2025, and the currently operative amended complaint ("Complaint") on December 2, 2025. The Complaint alleges two causes of action. (Complaint, p. 11.) The first is for alleged landfill gas collection system leaks and the second is for alleged landfill surface leaks. (*Ibid.*)

Defendant operates a sanitary landfill in Martinez, California. (Complaint, ¶ 55.) On August 24, 2023, Plaintiff conducted an inspection at the landfill, which included examining the landfill gas collection system components for leaks. (*Id.*, at ¶¶ 57, 58.) During this inspection, Plaintiff discovered one leak from a component of the landfill gas collection system that exceeded permissible limits. (*Id.*, at ¶ 59.) Defendant repaired the leak the day after it was discovered. (*Id.*, at ¶ 63.) Plaintiff also discovered four landfill surface leaks during the inspection. (*Id.*, at ¶ 66.) Two of these four leaks were fixed the day they were discovered and two were fixed the next day. (*Id.*, at ¶ 68.)

Plaintiff seeks penalties for the five leaks from Defendant in the amount of up to \$175,700. (Complaint, pp. 12-13.)

Legal Standard

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) "A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint's allegations, which are assumed to be true." (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the

complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Paragraphs 45 through 50 and 80 through 84 of the Complaint

Defendant argues that paragraphs 45 through 50 and 80 through 84 of the Complaint are improper and should be stricken because the Complaint alleges that Defendant complied with the corrective action and cure provisions such that no violation has occurred. (Notice of Motion, pp. 2-4; MPA ISO Motion, pp. 1-2.) Defendant proposes that the second cause of action seeks penalties for violations of Regulation 8-34-303 and Section 95465 (a) of the LMR, but the penalties being sought are not applicable because of Defendant's prompt repair of the surface leaks.

Specifically, Defendant focuses on Section 95469, subdivision (a) of the LMR. (MPA ISO Motion, pp. 2:21-3:7.) Defendant argues that its prompt remediation means there was no violation, but just an exceedance, according to Section 95469, subdivision (a). (*Id.*, at pp. 2-3.) Defendant argues that although Plaintiff will likely argue that this section and the cure periods it establishes only apply to self-detected leaks, this is not true because Section 95469(a)(1)(D) addresses exceedances detected during compliance inspections and provides that the only consequence is a return to quarterly testing. (*Id.*, at p. 4.) Defendant asserts that "[u]nder the canon of *expressio unius est exclusio alterius*, the California Air Resources Board's choice to specify a non-monetary consequence (increased monitoring frequency) excludes the imposition of immediate fines for remediated leaks." (*Ibid.*) Defendant points out that Section 95469(a)(1)(B)(2) provides what a violation is and that a violation only occurs "[i]f the re-monitoring shows a third exceedance, the owner or owner or operator must install a new or replacement well as determined to achieve compliance no later than 120 calendar days after detecting the third exceedance, or it is a violation of this subarticle."

Defendant also asserts due process is implicated here and that "[t]he Fair Notice Doctrine mandates that a regulation be sufficiently clear to provide a person of ordinary intelligence a reasonable opportunity to know what is prohibited." (MPA ISO Motion, p. 6.) Defendant finally implies that the regulations here are ambiguous and that the Rule of Lenity should be considered, which provides that where a regulation provides for a civil penalty and it is ambiguous, courts should strictly construe it against the government. (*Id.*, at p. 7.) Citing *Bittner v. United States* (2023) 598 U.S. 85, and *U.S. v. Trident Seafoods Corp.* (9th Cir. 1995) 60 F.3d 556, Defendant argues that the "LMR does not clearly and unambiguously state that strict liability penalties apply the moment an agency inspector detects a surface exceedance, nor does it state that such penalties accrue daily until corrected." Thus, Defendant concludes that Plaintiff's attempt to penalize it must fail. (MPA ISO Motion, p. 8.)

In its Opposition, Plaintiff argues that an exceedance of the LMR's methane limit is a violation due to the usual and ordinary meaning of the language used in the LMR. (Opposition, p. 5.) Plaintiff argues that the LMR is not ambiguous (Opposition, pp. 6-7) and that Defendant's misstatement of the LMA and self-monitoring grace period does not render the LMR ambiguous (*Id.*, at pp. 7-9.). Plaintiff asserts that Defendant's interpretation seeks to apply an opportunity to correct a violation found from self-monitoring to the entire LMR and that Defendant's reading would nullify Section 95465's clear prohibition on any exceedance greater than 500 ppmv (*Id.*, at p. 9.)

Plaintiff further argues that Defendant's reading of the LMR and its attempt to apply the self-monitoring cure periods and framework to the LMR as a whole would defeat the core purpose of the regulations (to lower pollution) and bring about absurd results that would "strip regulators of any ability to enforce violations of the LMR and would allow exceedances to continue for up to 120 days. Further, it would absurdly provide the opportunity to cure to recalcitrant polluters who choose not to self-monitor or to repair leaks until a regulator inspects and focuses enforcement efforts on them." (Opposition, p. 10.) Plaintiff cites *Department of Alcoholic Beverage Control v. Alcoholic Beverage Control Appeals Bd.* (2003) 109 Cal.App.4th 1687, 1696, for the principle that "[r]egulations are not interpreted in a manner that results in absurd consequences or defeats the core purpose of their adoption."

Plaintiff points out that CARB is entitled to deference with respect to its interpretation of the LMR, citing *American Chemistry Council v. Office of Environmental Health Hazard Assessment* (2020) 55 Cal.App.5th 1113, 1148, for the general principle that, "courts will be deferential to government agency interpretations of their own regulations, particularly when the interpretation involves matters within the agency's expertise and does not plainly conflict with a statutory mandate." (Opposition, pp. 11-12.) Plaintiff distinguishes the *Trident* case and asserts that there is no due process violation here because there is no ambiguity or lack of clarity on which to premise the allegations and that the regulated community has had longstanding, consistent notice of CARB's interpretation of these regulations. (*Id.*, at pp. 12-14.)

On Reply, Defendant argues that new proposed language for Section 95469(a)(1)(D) shows that the current version lacks a penalty. The current language of Section 95469(a)(1)(D), provides that "[a]ny exceedances of the limit specified in section 95465(a)(1) detected during any compliance inspections will result in a return to quarterly monitoring of the landfill." (Reply, p. 3.) The new proposed language will be, "[a]ny exceedances of the limit specified in section 95465(a)(1) detected during any compliance inspections are a violation of this subarticle." Defendant also repeats its argument about the canon of *expressio unius est exclusio alterius* ("the express mention of one thing excludes all others") barring Plaintiff from seeking penalties where the regulation only specifies a return to quarterly monitoring. (*Id.*, at p. 4.) Defendant also offers additional argument on the Fair Notice Doctrine and the Rule of Lenity. (*Id.*, at pp. 4-6.) Defendant finally asserts that granting the Motion will aid in resolution of this action. (*Id.*, at p. 7.)

It is true that a party may seek to strike a portion of a cause of action:

We recognize that in some cases a portion of a cause of action will be substantively defective on the face of the complaint. Although a defendant may not demur to that portion, in such cases, the defendant should not have to suffer discovery and navigate the often dense thicket of proceedings in summary adjudication. We conclude that when a substantive defect is clear from the face of a complaint, such as a violation of the applicable statute of limitations or a purported claim of right which is legally invalid, a defendant may attack that portion of the cause of action by filing a motion to strike.

(*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)

However, this is not something to be used often or gratuitously.

We emphasize that such use of the motion to strike should be cautious and sparing. We have no intention of creating a procedural “line item veto” for the civil defendant. However, properly used and in the appropriate case, a motion to strike may lie for purposes discussed in this opinion.

(*PH II, Inc. v. Superior Court*, *supra*, 33 Cal.App.4th at p. 1683.)

Further, a decision to strike is never mandated and is always in the discretion of the court.

The court **may**, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code of Civ Proc., § 436, emphasis added.)

Here, Defendant acknowledges that the interpretation of a statute or regulation is a question of law for the courts. (MPA ISO Motion, p. 6:13.) The Court’s view is that all of the subparts to subdivision (a) of Section 95469, only apply where subdivision (a) is satisfied. Subdivision (a) of Section 95469, provides that “[a]ny owner or operator of a MSW landfill with a gas collection and control system must conduct instantaneous and integrated surface monitoring of the landfill surface quarterly using the procedures specified in section 95471(c).” The Court agrees with Plaintiff that this section does not apply to the instant Complaint because this action did not arise from Defendant’s quarterly monitoring. (Complaint, ¶¶ 57-60.) This is the plain meaning of the regulation. It makes no sense to read a subpart of a subdivision dealing with quarterly self-monitoring to apply to the entire LMR.

Defendant argues that because subdivision (a)(1)(D) of Section 95469 provides that “Any exceedances . . . detected during any compliance inspections will result in a return to quarterly monitoring of the landfill,” that this means that there can be no other penalty due to the canon of *expressio unius est exclusio alterius*. (MPA ISO Motion, p. 4.) However, the Court disagrees.

Section 95465 clearly provides that “Except as provided in sections 95464(d), 95464(e), and 95466. . . no location of the MSW landfill surface may exceed either of the following methane concentration limits: (1) 500 ppmv, other than non-repeatable, momentary readings, as determined by instantaneous surface emissions monitoring. (2) An average methane concentration limit of 25 ppmv as determined by integrated surface emissions monitoring.” Section 95472 provides that “[p]enalties may be assessed for any violation of this subarticle pursuant to Health and Safety Code section 38580. Each day during any portion of which a violation occurs is a separate offense.” As “violation” is not a defined term, it is logical that exceeding “500 ppmv, other than non-repeatable, momentary readings, as determined by instantaneous surface emissions monitoring,” is a violation. Section 95469(a) deals with a situation not alleged here and does not guide the analysis for the instant dispute.

The Court does not find that any due process considerations apply here. Further, the Fair Notice

Doctrine and Rule of Lenity are not implicated due to the clear language of Section 95465 and 95472 and the inapplicability of Section 95469(a).

Ruling

For the reasons discussed above, the Court **DENIES** Defendant's motion to strike.

18. 9:00 AM CASE NUMBER: MSC21-00513
CASE NAME: STANDEFER VS SIERRA-AT-TAHOE
***HEARING ON MOTION IN RE: COMPLIANCE HEARING (SET BY THE COURTROOM)**
FILED BY:
TENTATIVE RULING:
Summary

Upon review of Plaintiff's Compliance Statement filed on April 23, 2026, the Court finds that the Parties complied with the Final Order Approving Settlement filed on September 10, 2025. The Court hereby orders the release of the remaining 5% in attorney's fees to Plaintiff's counsel. Plaintiff's counsel shall prepare and e-file a conforming order no later than five (5) days from the date of this hearing. No appearance is required at the May 6, 2026 hearing.

19. 9:00 AM CASE NUMBER: MSC21-01757
CASE NAME: MARSHA TILLER VS U.S. BANK
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: VALUATION ONE INC A CALIFORNIA CORPORATION
TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.

20. 9:00 AM CASE NUMBER: PS25-1449
CASE NAME: SCOTT JACOBY VS. STEVEN CHAN
***HEARING ON MOTION IN RE: MOTION TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS' SENIORS RETIRENT RESIDENCE**
FILED BY: JACOBY, SCOTT
TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.

21. 9:00 AM CASE NUMBER: PS25-1449
CASE NAME: SCOTT JACOBY VS. STEVEN CHAN
***HEARING ON MOTION IN RE: NOTICE OF MTN AND MTN TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS SENIOR RETIREMENT RESIDENCE; DECLARATION IN SUPPORT OF MTN**
FILED BY: CHAN, STEVEN L.
TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C24-02254

CASE NAME: LAURENCE GURRIES VS. LASSEN CANYON NURSERY, INC.

***HEARING ON MOTION FOR DISCOVERY ENFORCE DEPOSITION SUBPOENA TO VERIZON WIRELESS SERVICES, LLC FOR PRODUCTION OF DOCUMENTS**

FILED BY: LASSEN CANYON NURSERY, INC.

TENTATIVE RULING:

Summary

Defendants Lassen Canyon Nursery Inc. and Nancy Jimenez (“Defendants”) Motion to Enforce Deposition Subpoena to Verizon Wireless Services LLC for the Production of Documents is **granted** on the condition that Defendants can submit a proof of service showing that the agents for service of process for Verizon were properly served with this Motion and the accompanying papers.

Background

This litigation concerns a traffic accident which occurred on March 9, 2023 near the Benecia Bridge toll plaza on northbound I-680 in Martinez, California. An F-150 pickup truck driven by Defendant Nancy Jimenez collided with a semi tractor-trailer driven by plaintiff Laurence Gerald Gurries. Plaintiff claims he was injured and filed a personal injury action against the defendants.

Defendants served a Deposition Subpoena to Verizon Wireless Services LLS for the production of cellular phone / mobile phone records relevant to the incident. Plaintiff Laurence Gurries (“Plaintiff”) objected to the subpoena and announced that it would file a motion to quash the subpoena.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature

intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Defendants deposition subpoena and the accompanying request for production of documents are relevant, as the items are reasonably calculated to lead to the discovery of admissible evidence. Plaintiff has waived privacy in his mobile phone records for the date of the accident by filing this lawsuit. The party seeking the constitutionally protected information has the burden to establish direct relevance. *Davis v. Sup. Ct.* (1992) 7 Cal. app. 4th 1008, 1017 (internal citations omitted). On the other hand, courts place the burden on the party asserting a privacy interest to establish the extent and seriousness of the alleged invasion and must weigh the countervailing interests of the opposing party identifies. *Williams v. Sup. Ct.* (2017) 3 Cal. 5th 531, 557.

Here, the Court concludes that plaintiff's cell phone records are directly relevant to the affirmative defense of comparative negligence. The records are relevant as to whether plaintiff was texting or on the call before or during the accident, and whether plaintiff was comparatively negligent. Such records are reasonably calculated to lead to the discovery of admissible evidence. Plaintiff's privacy interest does not outweigh the countervailing interests of discovery on the issue of comparative negligence.

Based on the foregoing, the Court finds good cause to grant Defendants' Motion.

Ruling

1. Defendants' Motion is granted on the condition that Compex can demonstrate that it served the agent for service of process for Verizon. This condition may be satisfied by the filing of a proof of service form no later than five (5) days from the date of this hearing.
2. The Court will execute the proposed order lodged by Defendants' counsel on December 23, 2025, attaching a copy of this tentative ruling.

23. 9:01 AM CASE NUMBER: C25-01656

CASE NAME: MARY O'BRIEN VS. JOHN ROGERS

***HEARING ON MOTION FOR DISCOVERY COMPEL SUPPLEMENTED DISCOVERY RESPONSES**

FILED BY: ROGERS, JOHN

TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.